STATE OF MICHIGAN

IN THE 52/3 JUDICIAL DISTRICT

THE PEOPLE OF THE STATE OF MICHIGAN,

Plaintiff,

v Case No. 24-007808

FOX ROBERT PARTON,

Defendant.
_____/

JURY TRIAL
VOLUME II

BEFORE THE HONORABLE NANCY TOLWIN CARNIAK, P-37601

Rochester Hills, Michigan - May 22, 2025

APPEARANCES:

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TABLE OF CONTENTS

PLAINTIFF WITNESSES:

MIGUEL MENDEZ
Direct Examination by Mr. Paskulovich, page 10
Cross-Examination by Mr. Parton, page 15
Redirect Examination by Mr. Paskulovich, page 45

DEFENSE WITNESSES:

Fox Parton
Defendant testified, page 51
Cross-Examination by Mr. Paskulovich, page 58

EXHIBITS:	MARKED	ADMITTED
PX22 (defendant's written statement)		13
DXA (search warrant)	30	30

Closing argument by Mr. Paskulovich, page 72
Closing argument by Mr. Parton, page 81
Rebuttal by Mr. Paskulovich, page 98

Jury instructions, page 102

Jury verdict, page 119

1 Rochester Hills, Michigan
2 May 22, 2025
3 At 8:37 a.m.
4 - - -
5 THE COURT: Calling the case of People versus
6 Parton, 24-7808.
7 MR. PASKULOVICH: Morning, your Honor. Kyle
8 Paskulovich appearing on behalf of the People.
9 THE DEFENDANT: Good morning, your Honor. Fox
10 Parton representing myself.
11 MR. DOWNER: Harold Downer, your Honor, standby
12 counsel for Mr. Parton.
13 THE COURT: Thank you. And this is the date and
14 time for the continuation of the jury trial. Are both
15 sides ready to proceed?
16 MR. PASKULOVICH: Yes, your Honor.
17 THE DEFENDANT: Yes, your Honor.
18 THE COURT: Okay.
19 MR. DOWNER: Your Honor, if I may.
20 THE COURT: Yes.
21 MR. DOWNER: Before the jury's brought in, I
22 believe the rule requires your Honor to confirm a
23 continued waiver of counsel for Mr. Parton.
24 THE COURT: Oh, thank you.
25 MR. DOWNER: And I also wanted to inquire if

1 your Honor wanted to voir dire now as to Mr. Parton's
2 right to testify and remain silent or you wanted to wait
3 till the close of the prosecutor's case.
4 THE COURT: You know, I think for efficiency
5 sake I think we can do that now just because it's my
6 understanding the People just have a few questions and
7 then some cross-examination. So thank you for bringing
8 that up.
9 MR. DOWNER: Yes, your Honor.
10 THE COURT: So, Mr. Parton, first things, you do
11 have a right to an attorney, as you know. If you cannot
12 afford one, one would be appointed for you. Do you
13 understand that right?
14 THE DEFENDANT: Yes, your Honor.
15 THE COURT: Would you like to have appointed
16 counsel?
17 THE DEFENDANT: During -- just today in general.
18 THE COURT: Specifically today, yes.
19 THE DEFENDANT: No, your Honor. I'll proceed
20 with representing myself.
21 THE COURT: Okay. You know you do so at your
22 own peril. You have been representing yourself already.
23 You still will have standby counsel. That will not
24 change. I just want to make sure that no one's threatened
25 you or promised you anything to give up your right to an

1 attorney.

2 THE DEFENDANT: No, your Honor.

3 THE COURT: All right. You also have a right

4 not to testify and that silence cannot be held against

5 you. Do you understand that?

6 THE DEFENDANT: Yes, your Honor.

7 THE COURT: And knowing that, is it your desire

8 to testify today on your own behalf or will you exercise

9 your right to remain silent?

10 THE DEFENDANT: I'll testify in my own behalf.

11 THE COURT: Okay. Again, anything you say can

12 and will be used against you. Do you understand that?

13 THE DEFENDANT: Yes, your Honor.

14 THE COURT: And you freely and voluntarily

15 understand that and are still willing to testify; is that

16 correct?

17 THE DEFENDANT: Yes, your Honor.

18 THE COURT: All right. Anything else that you

19 think should be stated, Mr. Downer?

20 MR. DOWNER: Just to confirm, your Honor, if Mr.

21 Parton was to change his mind at the close of the case and

22 he chooses to rest, he may do so, I assume that's correct?

23 THE COURT: Oh, absolutely.

24 So if for whatever reason you decide, you change

25 your mind and decide not to testify, just let the Court

1 know. That's not a problem at all.
2 THE DEFENDANT: Okay.
3 THE COURT: Thank you.
4 All right. Thank you for both of those things.
5 Anything else preliminarily?
6 MR. PASKULOVICH: Your Honor, I think there is a
7 stipulation to admit People's 1 through 5. Should I wait
8 for the jury to admit those or can we do that now?
9 THE COURT: Yes. They were stipulated to, and
10 if they haven't been admitted, they will be admitted, and
11 we will let the jury know that as well.
12 MR. PASKULOVICH: Thank you.
13 THE COURT: And I'm assuming you weren't able to
14 stipulate to any other potential exhibits from the
15 defense, or were you able to do so?
16 MR. PASKULOVICH: I don't know if there are any
17 exhibits.
18 THE DEFENDANT: I didn't present any exhibits.
19 THE COURT: Oh, okay. When I had left I thought
20 you were reviewing exhibits.
21 MR. PASKULOVICH: Right. There was some
22 discussion but --
23 THE COURT: Okay. All right. Sounds good.
24 COURT RECORDER: Can I just ask a question?
25 There's no 6, correct? We discussed that yesterday.

1 MR. PASKULOVICH: That is -- wait. There is a
2 6. It's the Facebook message Johnald.
3 THE DEFENDANT: I didn't stipulate to any of the
4 screenshots.
5 MR. PASKULOVICH: No, I know. I think it starts
6 with 7 with Johnald, the Facebook message.
7 THE COURT: So there is no 6.
8 MR. PASKULOVICH: There's no 6.
9 THE COURT: Okay.
10 MR. PASKULOVICH: No 6.
11 COURT RECORDER: Thank you.
12 THE COURT: All right. With that if you want to
13 call the jurors in.
14 COURT CLERK: And there is an individual in the
15 courtroom. Is he going to be called as a witness?
16 UNIDENTIFIED MALE: I do not wish to be called
17 as a witness, your Honor.
18 THE COURT: Okay. Do you want to --
19 MR. PASKULOVICH: Your Honor, I suspect that
20 this is the husband of the victim.
21 THE COURT: Okay.
22 MR. PASKULOVICH: I, now that I've finished my
23 case, will not be calling him.
24 THE COURT: Okay.
25 MR. PASKULOVICH: But in full candor, defendant

1 had asked he be here today. So I don't know if he'll be
2 called as a witness.
3 THE COURT: Oh, okay.
4 THE DEFENDANT: I hadn't been planning on it.
5 THE COURT: So neither of you are planning on
6 calling him as a witness; is that correct?
7 THE DEFENDANT: No, your Honor. I had just
8 asked yesterday if he was here and if they had planned to
9 call him --
10 THE COURT: Okay.
11 THE DEFENDANT: -- as a witness in general.
12 THE COURT: All right. So he does not have to
13 stay, but he can stay if he'd like to in the courtroom.
14 Are we in agreement with that?
15 UNIDENTIFIED MALE: Yes, your Honor. I'm just
16 here --
17 THE COURT: No. I'm not asking you, sir.
18 UNIDENTIFIED MALE: Sorry.
19 THE COURT: That's okay.
20 Is that correct?
21 MR. PASKULOVICH: That's correct, your Honor.
22 THE COURT: Is that correct, Mr. Parton? If he
23 stays here he won't be able to testify.
24 THE DEFENDANT: Yeah, that's fine, your Honor.
25 THE COURT: Okay. All right.

1 And just so you're clear, sir, you can stay in
2 the courtroom if you want to. You're also free to leave.
3 Thank you.
4 You may call the jurors in.
5 COURT CLERK: All rise for the jury.
6 (At 8:43 a.m., jurors enter courtroom.)
7 THE COURT: Please be seated. Good morning and
8 welcome back. We'll be ready to go. When we last left
9 off we had just watched a video and now -- as part of
10 People's underlying case, and with that I think you were
11 going to question the detective.
12 MR. PASKULOVICH: Yes. People would call --
13 THE COURT: Would you like to recall him?
14 MR. PASKULOVICH: Yes. People will recall
15 Detective Mendez.
16 THE COURT: Thank you.
17 And, Detective, I'm going to swear you back in.
18 Please raise your right hand.
19 Do you swear or affirm the information you're
20 about to provide the Court will be truthful, accurate, to
21 the best of your ability, so help you God?
22 DETECTIVE MENDEZ: Yes, I do.
23 THE COURT: Thank you. Please be seated and if
24 you could state your name one more time for us.
25 THE WITNESS: Detective Miguel Mendez.

1 THE COURT: Thank you. And we're all set.
2 Thank you.
3 MIGUEL MENDEZ
4 was called at 8:43 a.m. by the People, sworn by the Court,
5 testified:
6 DIRECT EXAMINATION
7 BY MR. PASKULOVICH:
8 Q Detective, you were here in the courtroom with us
9 yesterday when we watched the interview video of the
10 defendant. Was that the conclusion of the interview?
11 A Yes, sir.
12 Q Have you spoken with the defendant since then?
13 A No, I don't believe so.
14 Q All right. So in terms of your investigation, after that
15 interview was completed, what, if anything, did you do?
16 A Like I said, I put the interview into command central, got
17 the whole report together, and sent that to the
18 Prosecutor's Office.
19 Q Did you at any point match up, seeing the things that the
20 defendant said, with the messages you received from
21 Brianna?
22 A Yes, I did.
23 Q And were those corroborated? With the stuff defendant
24 said he sent, was that the things that you saw on
25 Brianna's device these are messages that she gave you?

1 A Yes. Yes.
2 Q Were you able to determine if there were multiple
3 accounts, or did you put a list together of all the
4 accounts that were used by defendant?
5 A There were multiple Facebook accounts.
6 Q Did you use any other social media or find any other
7 social media used?
8 A No, just the Facebook.
9 Q So you said you turned it over to the Prosecutor's Office
10 at that point.
11 A Yes, sir.
12 Q Was that for a warrant request, or what was the request?
13 What did you mean? Can you tell the jury when you turned
14 it over to the Prosecutor's Office?
15 A So I turned it over for review on a warrant request. So
16 basically the prosecutor would look at it, and if they
17 deemed charges are appropriate, they issue charges.
18 Q When you turned it over to the Prosecutor's Office, are
19 you seeking a specific charge, or how does that work?
20 A That one was -- I do seek specific charges, stalking, but
21 there has been times when the prosecutor deems that it's a
22 different charge and they change that on the warrant.
23 Q But in this case based on all of your investigation, what
24 charge were you requesting?
25 A Stalking.

1 Q Have you been aware of any other interactions between the
2 defendant and victim since the case was charged?
3 A No, just that Brianna told me that Fox's mom posted on
4 Facebook that if something happens to him, it's going to
5 be Brianna's fault.
6 Q At any point in your investigation did you talk to the
7 defendant's family?
8 A No. I believe the father. I think I called him to get a
9 hold of Fox in the initial investigation.
10 Q Did you talk about any of the allegations of the case or
11 was it just to --
12 A No, just to talk with Fox.
13 Q Now, I believe there's a written statement that you had
14 the defendant write as well; is that correct?
15 A Yes, sir.
16 Q Would you recognize that if you saw it again?
17 A Yes, I would.
18 MR. PASKULOVICH: Your Honor, may I approach the
19 witness?
20 THE COURT: Yes.
21 BY MR. PASKULOVICH:
22 Q Showing you People's Exhibit no. 22. Do you recognize
23 what that is?
24 A Yes. That's the statement that Fox provided at the end of
25 the interview.

1 Q And is that a fair and accurate depiction of the statement
2 he provided?
3 A Yes.
4 MR. PASKULOVICH: Your Honor, I'd move to admit
5 People's Proposed Exhibit 22 into evidence.
6 THE COURT: Any objection?
7 THE DEFENDANT: No objection, your Honor.
8 THE COURT: All right. It will be admitted.
9 (At 8:47 a.m., People's Exhibit no. 22
10 admitted.)
11 BY MR. PASKULOVICH:
12 Q Now, in terms of the messages that you got from Brianna,
13 what was the format you received those in?
14 A What do you mean?
15 Q She showed you on the phone? Did she screenshot them?
16 Did you --
17 A They're all screenshots. They were received -- Deputy
18 Hill received those and attached those to the report.
19 Q So that would be Brianna sent them to Deputy Hill.
20 A Yes.
21 Q Did you get any official records from the social media
22 companies?
23 A Yes, from Facebook.
24 Q All right. And what's the process for getting those?
25 A It would be a warrant, a search warrant request, which I

1 fill out, goes through the courts. The magistrate signs
2 off on it. I send that request to Meta, in which Meta --
3 Q So in this case, though, the search warrant you requested,
4 was it for specific accounts or --
5 A Yes. It was for the accounts of Fox Parton, Johnald
6 Fettuccini, Joe Caza, Xof Notrap, and I believe there was
7 one more.
8 Q So magistrate authorized that search warrant.
9 A Yes.
10 Q And then you sent it to Meta. What happens after that?
11 A So I sent it to Meta's, like, warrant part, and after a
12 little while they recognize it. They send me back the
13 records in which they have.
14 Q Do the records have all messages or all the information of
15 the account or --
16 A Not all of them because they could be, you know -- Meta
17 will only retain records for a certain amount of time and
18 then it's, like, purged out of their system. Then, like,
19 if users delete messages and stuff, it won't show on that
20 record.
21 Q Are you familiar with end-to-end encryption?
22 A Yes.
23 Q And what is that?
24 A End-to-end encryption is just -- it's an encrypted program
25 that -- like basically, I mean, for example, WhatsApp,

1 it's end-to-end encrypted. If I do a search warrant on
2 that, I will not be able to see any messages on that
3 because it's encrypted.
4 Q Does Meta offer end-to-end encryption option?
5 A I believe so.
6 Q So that impacts the results you get from a search warrant?
7 A Yes.
8 Q Was there any other investigation you did with this case
9 or anything you think the jury should know about your
10 investigation?
11 A Just the -- I mean, Facebook search warrant. That's about
12 it.
13 Q All right. Thank you, Detective.
14 A Yep.
15 THE COURT: Anything further?
16 MR. PASKULOVICH: It's cross now.
17 THE COURT: Okay. Whenever you're ready, you
18 can ask the detective questions.
19 CROSS-EXAMINATION
20 BY THE DEFENDANT:
21 Q Detective Mendez, you said earlier that you've been a
22 detective or you've been in your position for about six
23 months; is that correct?
24 A Yep.
25 Q And the interview that we performed, it was supposed to

1 have taken place about six months ago; is that correct?
2 A Yep.
3 Q How long had you been working in your position as an
4 investigator at the time of that interview?
5 A Probably a couple weeks.
6 Q A couple weeks?
7 A Yeah.
8 Q So you were still kind of getting a hang of the position,
9 would you say?
10 A Well, I mean, this is just being an investigator in Orion
11 Township. I have 15 years' law enforcement experience. I
12 was an investigator with Genesee County --
13 Q Okay. So you have previous --
14 A -- prior to. Yeah.
15 Q I'm sorry. I didn't mean to cut you off.
16 A I mean, prior to coming to Oakland County.
17 Q So how many years roughly do you have specifically as an
18 investigator?
19 A Probably about five, six years.
20 Q Five, six years?
21 A Mm-hmm.
22 Q And that was with a different department?
23 A Yeah.
24 Q Would you say that the systems and procedures are
25 basically identical or standardized or --

1 A They were the same.
2 Q -- was there something to get used to when you moved to
3 Lake Orion?
4 A No. They're about the same.
5 Q About the same? Okay.
6 A Mm-hmm. I mean, the only difference is courts. You're
7 dealing with different courts.
8 Q Courts, gotcha. There's no difference in the IT systems
9 or anything like that?
10 A What do you mean by IT systems? Are you talking about
11 different -- of course, you know, other departments are
12 going to have different programs, all right?
13 Q That's what I was asking.
14 A So, like, this isn't the same program if you're going to
15 go the IT side.
16 Q Gotcha.
17 A Like we didn't work with CaseCracker in Genesee County.
18 Q Okay.
19 A Everything was through Motorola One.
20 Q So different software, different infrastructure.
21 A Sure.
22 Q What I'm asking, you're not aware of, like, a standardized
23 -- like when you were working in your previous department
24 versus working in Lake Orion that there's, like, a
25 standard for what computer model or server model or modem

1 that you use. It's different equipment, different places?
2 A Yeah. It's what people can afford, what departments can
3 afford.
4 Q Based on the needs of the department, right?
5 A Yeah.
6 Q Okay. So over the course of this case the past six
7 months, can you tell me roughly how many other cases you
8 had to take on?
9 A I'd have to look at my caseload.
10 Q Okay. You have any sort of an idea like a week to week
11 how many cases you deal with, like what the volume --
12 A Normally in about a week it's probably, like, two or three
13 cases.
14 Q Only two or three?
15 A Yep, in a week.
16 Q Okay. So would it be safe to say as an estimate that is
17 about 75 cases over the last 6 months if we're talking 2
18 or 3 a week?
19 A I mean, after going -- because I was on my computer today,
20 I was probably at about 30 cases that I've had closed and
21 6 cases are open, so about 36. Because a lot of our
22 cases, they'll come to us and we only send it to the
23 prosecutor if we swear to it and then it goes back to the
24 officer if it's, like, a low misdemeanor or something they
25 can handle.

1 Q Okay. So to your knowledge, somewhere around 30 cases in
2 the last six months, but you'd have to check to be sure.
3 A Yeah.
4 Q Okay. And you signed off on the search warrant that went
5 to Meta, Inc., a.k.a. Facebook, right?
6 A Yes, sir.
7 Q So you --
8 A Myself and the magistrate.
9 Q You handled that whole process --
10 A Yes.
11 Q -- on the law enforcement side.
12 A Yeah.
13 Q Okay. And you processed the return when it was received
14 January 7th?
15 A I don't know the exact date it was processed.
16 Q I'm just going off of what was in the case report in
17 the --
18 A Yeah. If it's in the case report, yeah.
19 Q Okay. So you received it January 7th and you said you
20 uploaded it to the relevant system as soon as you received
21 it?
22 A Relevant system, I believe I uploaded it to the report,
23 so, yeah, CLEMIS.
24 Q So you attached it to the report.
25 A Yeah.

1 Q As soon as you got it. And you're not aware of what would
2 have happened in the four months between that and May 9th
3 when the defense was allowed to see that evidence.
4 A No. What do you mean by that?
5 Q On the record defense counsel didn't receive access to
6 that search warrant until -- or the warrant return until
7 May 9th, four months after you received it.
8 A So that's got nothing to do with me on the detective side.
9 That's all the courts.
10 Q You can't speak to that.
11 A No, not at all.
12 Q It's just going from department to department. You don't
13 really know what's going on.
14 A No. I can't speak to what you have access to, what you
15 can, or when. That's not up to me.
16 Q Okay. During that interview, you had a written synopsis
17 is what it says on there, a written synopsis of what
18 occurred over the course of the interview; is that
19 correct?
20 A So over the course of the interview -- you're speaking
21 about my report.
22 Q Your report.
23 A Of the interview.
24 Q Yes.
25 A So I basically synopsized and it's not verbatim. Because

1 if I were to write that whole interview verbatim, I mean,
2 you'd be holding onto 35, 40 pages.
3 Q Right. Right. It's just a highlight of the most
4 important pieces of the interview from your perspective;
5 is that correct?
6 A Yes. Yeah.
7 Q Okay. And did you -- before coming here today after
8 dealing with 30 other cases over the last 6 months,
9 working your day-to-day job, did you have -- you know, an
10 hour-and-15-minute-long interview, did you have to review
11 the video at all before coming here in order to refresh
12 your memory of what happened?
13 A I mean, I've reviewed the video in the past, even what we
14 just did. We all viewed the video yesterday.
15 Q Right. Exactly. But you wouldn't have been able to --
16 the same way that if you had written out the synopsis, you
17 said, if you were going to capture every detail of it, it
18 would be 20, 30 pages long. You wouldn't be able to sit
19 and from memory describe the entire interview from front
20 to back in detail because it would be an hour long speech,
21 right? You'd have to --
22 A Well, yeah.
23 Q -- refresh yourself a little bit.
24 A Hour and 15, but, yeah, you'd have to have a photographic
25 memory and basically be a genius to do that.

1 Q Exactly. Now, that report -- I've been saying I should be
2 a more organized lawyer, but I'd rather just never be one
3 again.
4 Would you need to review this report? Would you need
5 to see it in order to refresh your memory to speak to it?
6 A Yes, I would have to see it.
7 Q Okay. Maybe I'll find the third page here.
8 THE COURT: What is the question that you need
9 to refresh your recollection on?
10 THE DEFENDANT: Refresh his recollection on the
11 written report that he wrote on the interview, your Honor.
12 THE COURT: Is there a specific question about
13 that?
14 THE DEFENDANT: Yes, your Honor. I'm just
15 trying to find the last page here so I can hand it over to
16 him.
17 THE COURT: Okay. Why don't you ask him a
18 question first to see if he needs to refresh his memory
19 depending upon the question?
20 BY THE DEFENDANT:
21 Q Well, what I wanted to ask you about, Detective Mendez, is
22 do you remember or did you remember the part of the
23 interview where towards the end you started asking me
24 about things not necessarily relevant to the charge,
25 asking me about my military history, supervisors? During

1 my time in the National Guard you asked about if I had
2 ever killed myself. We had that period where --
3 A You obviously never killed yourself but --
4 Q I'm sorry. Did I say kill myself?
5 A Yeah.
6 Q Attempted suicide. Sorry, early in the morning. And we
7 had that emotional reaction, all of that, but I don't see
8 any of that reflected in the written report. Why would
9 something like that not make it into a synopsis, not even
10 like a bullet point?
11 A That's not pertinent to the case. Our thing, doing that,
12 is we wanted to make sure you are not suicidal at that
13 time, because if you were suicidal at that time, then we'd
14 have to take law enforcement action to get you help.
15 Q Okay.
16 A And basically with that, Fox, if you said you were
17 suicidal, we would get you mental health right there,
18 mental health help.
19 Q Understood.
20 A And that would be even if we had to call an ambulance or
21 we took you to the hospital ourselves to get an
22 evaluation.
23 Q Right.
24 A All right? To get you help.
25 Q But that's not something that you reflected in the report

1 at all.
2 A No.
3 Q Not even to say Fox stated was not suicidal. I don't see
4 anything like that in the report either.
5 A No, it's in the interview.
6 Q Just not the synopsis.
7 A No.
8 Q I see some other I would presume to just be clerical
9 errors or errors of having to write things down quickly,
10 some minor details that don't line up with the interview.
11 But it says right here -- I believe it says something
12 along the lines of, this written account is a synopsis,
13 not meant to be a comprehensive overview of the interview.
14 Does that sound correct?
15 A I would have to see my report to see what it says, but I
16 believe it says just a synopsis, not verbatim.
17 Q Right. Exactly. So when you interviewed me there, did
18 you collect any identification?
19 A You identified yourself.
20 Q Well, I understand that you have somebody that says that
21 their name is X, but did you collect any identification
22 like a driver's license, social security card, some sort
23 of verification of identity?
24 A I don't recall. I don't recall.
25 Q You don't recall?

1 A Uh-uh.
2 Q So you don't have, like, any evidence to provide today
3 that would corroborate that interview, just a screenshot
4 for a printout of a driver's license or anything like that
5 to confirm the identity of the interviewee?
6 A Fox Robert Parton, date of birth, where you lived.
7 Q So a written signature and date of birth?
8 A By you.
9 Q Okay. I was just asking. I'm just asking the question.
10 A No, I get it. I get it.
11 Q Now, when you interviewed me at that station, we had some
12 conversations before that, right, leading into that?
13 A Over the phone.
14 Q Coordinating over the phone, right, before we went into
15 the interview room where it was recorded, correct?
16 A Mm-hmm.
17 Q So we had -- I don't remember the situation clearly six
18 months ago. We'll get to that more in my testimony, but I
19 believe we had multiple conversations over the phone and
20 multiple distinct phone calls.
21 A We might have.
22 Q You say you don't really recall the content of those phone
23 calls, right?
24 A No.
25 Q And you don't recall --

1 A I was asking you to come down for an interview if you
2 wanted to.
3 Q Right. But there was more than one call.
4 A I believe you didn't even have a voice mail set up. I
5 believe I called your father to try and get a hold of you,
6 too.
7 Q Right. That's what I was asking, which you appeared to
8 confirm before. We did have multiple conversations or
9 multiple distinct phone calls before that interview had
10 occurred.
11 A Define multiple.
12 Q Two or more.
13 A It was probably two, two or three.
14 Q Okay. And we did have conversation at the station before
15 we went into the interview room before it had become
16 recorded. Do you recall that at all?
17 A I think I thanked you for coming down.
18 Q But you don't really recall the content of any
19 conversations that might have happened before that?
20 A No.
21 Q When I came down to the station, was I tested to see if I
22 had anything in my system?
23 A No. What do you mean by that?
24 Q There was no Breathalyzer or drug test or medical exam.
25 A No. We don't normally --

1 Q No medical or mental exam?
2 A -- do that. No. I'm not a doctor. I can't give you a
3 medical exam.
4 Q I'm just verifying.
5 Did I appear to be under the influence of any
6 substances?
7 A Didn't appear so. You answered questions.
8 Q Yeah. Would you say based on my demeanor today versus
9 what you saw on that interview, did you notice any kind of
10 relative sluggishness in speech or general air of
11 confusion, poor recollection?
12 A It's about the same.
13 Q You think it's about the same?
14 A Yeah.
15 Q So I didn't appear confused to you at all?
16 A No.
17 Q Now, during that interview I wasn't able to come up with
18 the complaining witness's address; is that correct?
19 A Yeah.
20 Q I wasn't able to recall it.
21 A No. But in the interview you also confirmed that you
22 looked her up on White Pages too.
23 Q Correct. Said that but didn't know what the address was.
24 A No.
25 Q So we already asked, you said you were the one responsible

1 for the warrant return. Would you be able to speak to its
2 contents?
3 A Yeah.
4 Q And would you need to take a look at it in order to
5 refresh your memory?
6 A I would.
7 Q Okay.
8 MR. PASKULOVICH: I actually have those exhibits
9 that were admitted if you want to use those.
10 THE DEFENDANT: Oh.
11 MR. PASKULOVICH: One through five, the ones we
12 had yesterday.
13 (At 9:06 a.m., prosecutor and defendant discuss
14 exhibits between themselves.)
15 THE DEFENDANT: Is it all right to look up a
16 component of the warrant on my phone to show it to you?
17 THE COURT: What is the question?
18 THE DEFENDANT: The actual form which was
19 submitted to Facebook that had the details of what was
20 requested, we never actually stipulated to it and I don't
21 actually have a copy on me and the prosecution doesn't
22 seem to either. I was just going to --
23 MR. PASKULOVICH: I do have a copy of the search
24 warrant, but, your Honor, I don't know if that would be an
25 appropriate argument. The search warrant of that is

1 evidentiary.

2 THE COURT: So what is the relevance of the --

3 so what is the question?

4 THE DEFENDANT: Well, I wanted to have Detective

5 Mendez confirm what had actually been requested in the

6 warrant so that he could speak to what was returned.

7 THE COURT: Okay. As it relates to what was

8 returned, you want to know what was returned in the

9 warrant?

10 THE DEFENDANT: Yes. We stipulated to the

11 returns, but then the request itself we didn't actually

12 stipulate or admit, but he appears capable of laying the

13 foundation for it.

14 THE COURT: Okay. So he needs to review the

15 search warrant to see what was returned?

16 THE DEFENDANT: That's what I'm asking.

17 THE COURT: Okay. Do we have a copy of the

18 return of the search warrant evidence?

19 MR. PASKULOVICH: I have the affidavit search

20 warrant order for nondisclosure.

21 THE COURT: Okay.

22 MR. PASKULOVICH: If he wants to admit that, I

23 would stipulate.

24 THE COURT: Okay. Do you want that admitted?

25 THE DEFENDANT: Yes, I move to admit this.

1 THE COURT: Okay. As Defense Exhibit A? If you
2 want to step forward, we'll have it marked, to my court
3 recorder. She'll mark it, and then you can show it to the
4 witness.
5 (At 9:10 a.m., Defendant's Exhibit A marked and
6 admitted.)
7 THE COURT: Do you have a question?
8 THE DEFENDANT: I was just giving him a moment
9 to review it, your Honor.
10 THE COURT: I think he's done.
11 THE WITNESS: What's the question?
12 BY THE DEFENDANT:
13 Q All done? So you can confirm that the search warrant
14 affidavit, it was submitted requesting from Meta a
15 complete history of all conversations on Facebook chat
16 Messenger, including messages, photos, videos, other
17 communications between Brianna Walters, and it gives her
18 user ID, and the accounts of Fox Parton -- there's two
19 different Fox Parton accounts with different user IDs --
20 the account Johnald Fettuccini, the account Xof Notrap,
21 and the account Joe Caza; is that correct?
22 A Xof Notrap.
23 Q Xof Notrap, Xof Notrap, whatever.
24 A Yeah.
25 Q Yes? And when that return came back, did you see any

1 communications between either the Fox Parton accounts and
2 Brianna Walters?
3 A I'll have to look at the search warrant return.
4 Q You'd like to review the returns too?
5 A Yeah. And which account are you talking?
6 Q There's two different. You can see it at the bottom.
7 Here's the Fox Parton. So the two Fox Parton accounts.
8 Can you tell me what communications, if any, were
9 returned between those two Fox Parton accounts and the
10 Brianna Walters account?
11 A No, there's no message returned on it.
12 Q So no messages were returned at all corroborating the
13 screenshots.
14 A No. Like I said earlier that if they were deleted, if it
15 goes over Meta's storage lines, they're just purged.
16 Q Correct.
17 A And those are encrypted. I can't --
18 Q And Meta's official statement is that if conversations are
19 deleted on the part of both participants, the
20 conversations may only be retrievable --
21 A So I have the search warrant for your account to --
22 Q I'm sorry. Could I finish my question?
23 A Yeah.
24 Q Thank you. So is it correct, are you aware of Meta's
25 official statements that when both users delete a

1 conversation, law enforcement may only be able to retrieve
2 those conversations for up to 90 days after they've been
3 deleted before they'd be wiped from backup memory?
4 A I would have to see their disclosure on that.
5 Q Okay. That's the disclosure that I --
6 MR. PASKULOVICH: Your Honor, this isn't a
7 question. He's --
8 THE COURT: Yeah. You need to ask a question.
9 THE DEFENDANT: I apologize.
10 BY THE DEFENDANT:
11 Q Were you in the courtroom at the time that Brianna was
12 testifying, or were you sequestered?
13 A Yesterday?
14 Q Yesterday.
15 A Yes. I'm the OIC on the case.
16 Q So you were able to hear her when she was testifying.
17 A Yes.
18 Q So when she was asked, were any of your Facebook
19 conversations between the defendant deleted or did you
20 delete any conversations between you and the defendant,
21 you heard her say no.
22 A I don't recall her being asked that. I can't recall that.
23 Q Okay. You can't remember everything from yesterday?
24 A No.
25 Q Okay. Is that something we're going to have to bring up

1 on the record somehow?

2 THE COURT: He doesn't remember.

3 THE DEFENDANT: Okay.

4 BY THE DEFENDANT:

5 Q Now, there were also screenshots submitted for

6 communications between the Joe Caza account and Brianna

7 Walters' account; is that correct?

8 A Yes.

9 Q And can you tell me what, if any, communications were

10 returned from that warrant between Joe Caza and Brianna

11 Walters?

12 A I guess it doesn't have any communications returned.

13 Q No communications returned? For the return for the

14 Johnald Fettuccini account --

15 A You're asking the same thing?

16 Q -- were the messages -- what messages, if any, were

17 returned -- you can just say in terms of volume what

18 communications, if any, were received between that account

19 and Brianna Walters.

20 A Do you want me to read the message?

21 Q No. I'm just asking in terms of volume what

22 communications were received.

23 A What do you mean?

24 Q One message, two messages, three messages, what

25 communications were --

1 A One, long one, two, so far two.

2 Q Two messages?

3 A Yep.

4 Q What were the dates on those?

5 A Seven eight of twenty-four, seven eleven of twenty-four.

6 Q So July 8th and July 11th.

7 A Yep.

8 Q Okay. Now, I presume you would need to be refreshed by

9 the screenshots of the Johnald Fettuccini communications

10 in order to speak to them?

11 THE COURT: You need to ask a question first.

12 What's the question, to see if he needs to be refreshed?

13 BY THE DEFENDANT:

14 Q Do you need to -- would you -- do you need to see the

15 screenshots submitted?

16 MR. PASKULOVICH: I'd object to the improper

17 form.

18 THE COURT: Okay. So you need to ask a question

19 about the screenshots. I'm assuming that's what you're

20 going to ask, right? Ask that question.

21 BY THE DEFENDANT:

22 Q Do the screenshots that were submitted reflect the

23 communications returned?

24 A I would have to see the screenshots to corroborate.

25 Q Okay. You'd like to review those?

1 THE DEFENDANT: Do you have those --
2 MR. PASKULOVICH: What?
3 THE DEFENDANT: The Johnald Fettuccinis?
4 MR. PASKULOVICH: This is the admitted exhibits
5 that have been admitted throughout the course of this
6 trial.
7 BY THE DEFENDANT:
8 Q These are all the screenshots that have been admitted.
9 A This is all the Johnald?
10 Q This is everything for Johnald.
11 A Thank you, sir.
12 MR. PASKULOVICH: Your Honor, I would object
13 generally. I would object generally to the form of this
14 question as well. He's asking if the screenshots match up
15 with the returns. There are dozens of screenshots that
16 may not have been placed into evidence. What's in
17 evidence isn't a representation of every screenshot the
18 defendant has.
19 THE COURT: So your objection is what?
20 MR. PASKULOVICH: Improper question, the form of
21 the question. It's insinuating -- he can't answer that.
22 He's giving him admitted exhibits and asking him if that
23 right there is a representation of everything they got
24 back from Meta. He can't match up --
25 THE DEFENDANT: I don't think that's --

1 MR. PASKULOVICH: -- he can't match up all of
2 the screenshots if he doesn't have them.
3 THE COURT: Okay.
4 MR. PASKULOVICH: The argument is that we don't
5 have stuff or Meta's records don't have what we have in
6 the screenshots.
7 THE COURT: Thank you.
8 THE DEFENDANT: Your Honor, if I could respond.
9 That's not -- I didn't really ask any question like that
10 to --
11 THE COURT: What is your question so he can
12 answer?
13 THE DEFENDANT: My question --
14 THE COURT: If it's too vague or too broad, he
15 won't be able to answer it, but if there's a specific
16 question, that'll be great.
17 THE DEFENDANT: I was just asking to start are
18 there any screenshots of what was returned in the warrant.
19 THE COURT: Screenshots where, in which exhibit?
20 THE DEFENDANT: The screenshots --
21 THE WITNESS: Seven, nine, and ten.
22 THE DEFENDANT: The screenshots submitted by the
23 complaining witness.
24 THE COURT: So in Exhibit seven, nine, and ten,
25 what is the question?

1 BY THE DEFENDANT:
2 Q Within Exhibit 7, 9, and 10, is the content which was
3 returned by the search warrant present in those
4 screenshots?
5 A No. No. This exact content is not in any screenshots.
6 Q Not in any of those screenshots. And is the content
7 that's in the screenshots, has any of that been returned
8 by the warrant?
9 A No.
10 Q No. So they got two completely different sets of content.
11 They don't share anything in common.
12 A The user name.
13 Q Just the user name but not the actual conversation.
14 A No. Like I explained earlier, it could have been deleted,
15 purged, everything Meta has to do with that.
16 Q But if somebody submitted an additional screenshot that
17 never existed, how would you speak to whether or not it
18 was simply deleted or inserted after the fact to prejudice
19 the jury?
20 A Say that again.
21 MR. PASKULOVICH: Judge, he's assuming facts not
22 in evidence. He's saying a screenshot that never existed.
23 There's --
24 BY THE DEFENDANT:
25 Q I'm asking what would you do as law enforcement, as an

1 investigator, how would you determine if additional
2 screenshots surfaced for this case?
3 A Now, what do you mean by additional screenshots?
4 Q If they surfaced, how would you determine if they had ever
5 been authentic?
6 A How'd they surface?
7 Q I'm sorry. What was that?
8 A That's my question as the investigator. How'd they
9 surface? Who brought those to the table?
10 Q If the complaining witness submitted additional
11 screenshots now.
12 A They'd be entered into the report.
13 Q It'd be entered into the report.
14 A Now we're in trial now.
15 Q How would you determine if they had simply been deleted
16 off of Facebook servers or never existed in the first
17 place?
18 A Say that again.
19 Q How would you determine if those submitted screenshots had
20 simply been deleted from Facebook servers or never existed
21 in the first place?
22 A I wouldn't. It's just --
23 Q You wouldn't be able to determine that.
24 A Yeah.
25 Q Would you convict someone off of a screenshot, though?

1 MR. PASKULOVICH: Objection.
2 THE WITNESS: That's not me. I'm not the jury.
3 THE COURT: Hang on. Hang on. Sustain the
4 objection. Objection sustained. That's an improper
5 question. That's for the trier of fact, which is the
6 jury.
7 THE DEFENDANT: I apologize. I was asking for
8 his opinion as an investigator.
9 THE WITNESS: I'm not the jury.
10 THE COURT: Any other questions?
11 THE DEFENDANT: Yes, your Honor.
12 BY THE DEFENDANT:
13 Q Is there any evidence in those returns of any accounts
14 being blocked?
15 A I would have to look through them. I don't know if they
16 show blocked. Can I look through them?
17 Q Yeah.
18 A I don't think there is and I don't know if they show
19 blocked accounts on here, because I requested the
20 messages, not the status.
21 Q Okay. So you never requested the status in your warrant
22 request.
23 A Yeah.
24 Q So they don't reflect any blocked.
25 A Because I'm looking for the messages, not the status.

1 Q So they don't reflect whether or not any of these accounts
2 were blocked.
3 A No.
4 Q Okay. That was my question.
5 A Okay.
6 Q For Xof Notrap or Xof Notrap, can you speak as to --
7 A What's Xof Notrap?
8 Q Xof Notrap? It's my name spelled backwards.
9 A Okay.
10 Q But I'm here to ask the questions, not make statements.
11 What communications are returned from that? And you
12 don't have to say the actual communications, just were
13 there communications returned?
14 A Yeah, there's communications.
15 Q Okay.
16 A Do you want more?
17 Q No.
18 A Okay.
19 Q If you saw those screenshots, would you be able to speak
20 to them? Or, I apologize. Improper form of the question.
21 Are you -- do you know if the screenshots submitted
22 are corroborated by that warrant?
23 A I would have to look at the screenshots.
24 Q Okay. Would you like to review the screenshots?
25 A Yes.

1 MR. PASKULOVICH: Your Honor, I believe the
2 question was for him to look at these screenshots and see
3 if they're corroborated. There's still some remaining. I
4 don't know if they should be part of it.
5 THE COURT: Yes. There's some other
6 screenshots?
7 THE DEFENDANT: Oh, but this is for --
8 THE WITNESS: Your Honor, these are 10, 13 --
9 THE DEFENDANT: -- this is the Fox Parton --
10 THE WITNESS: -- 14, 15, and 17.
11 THE COURT: Thank you.
12 THE DEFENDANT: I was asking about Xof Notrap
13 specifically.
14 THE COURT: So what is the question?
15 BY THE DEFENDANT:
16 Q My question was -- if I could even remember what I asked
17 five minutes ago. Are the screenshots submitted by the
18 complaining witness for the account Xof Notrap
19 corroborated by the search warrant return?
20 A All right. So I'm going to have to take a look at these.
21 It's going to take a little bit.
22 Q Okay.
23 A Yes, they are.
24 Q Okay. They appear to you that they are corroborated, that
25 they match up.

1 A This first one matches up with this one.
2 Q Okay. So they do match up.
3 A Yeah.
4 Q All right. So out of those five accounts that were
5 returned, looks like one out of five matches up with the
6 screenshots that were submitted by the complaining
7 witness. Would you say that's correct?
8 A Yeah.
9 Q Okay. The other four don't really match up. Three of
10 them don't return any communications at all.
11 A Yeah.
12 Q Okay. Were there any -- is there any evidence that you
13 saw over the course of your investigation as presented to
14 the Court that --
15 A Those screenshots.
16 Q I'm sorry. I didn't get to finish my --
17 A The screenshots. They were submitted with the original
18 report.
19 Q The answer's -- what is screenshots the answer to? I
20 didn't finish asking the question.
21 A Oh.
22 Q See, you can't do that to me because now I lost my train
23 of thought.
24 MR. PASKULOVICH: Your Honor, does he have a
25 question?

1 BY THE DEFENDANT:
2 Q Was there -- over the course of the investigation with the
3 evidence as it's been submitted to the Court, is there any
4 evidence linking me to this Xof Notrap account?
5 A What do you mean by -- what do you mean by that?
6 Q What evidence returned by the warrant links me to Xof
7 Notrap or Xof Notrap?
8 A There's your picture, there's messages, there's -- I
9 believe in the interview you even said Xof Notrap.
10 Q I think we'd have to check the record, but to my
11 recollection --
12 THE COURT: Okay. You can't testify. You'll
13 have a chance to do that. So do you have another
14 question?
15 BY THE DEFENDANT:
16 Q The question was --
17 THE COURT: I think he answered the question.
18 You need to ask another question.
19 BY THE DEFENDANT:
20 Q So when determining if there's a link between me and an
21 account, you're satisfied with the fact that it's a
22 picture of me and it's my name spelled backwards, and
23 that's indicative that I was the operator of the account?
24 A I'm satisfied that Brianna said it was you, you said it
25 was you, pretty much all that.

1 Q Okay. So does any other information match up between Xof
2 Notrap and the Fox Parton account?
3 A What do you mean by that?
4 Q I believe in the return there were IP addresses. Does the
5 IP address match?
6 A I don't know. I don't know if IPs match.
7 Q Feel free to review.
8 A No, the IPs don't match up but also the two Foxes don't
9 match up either.
10 Q Okay. So those two Foxes and the Xof Notrap, the IP
11 addresses don't match up.
12 A No.
13 Q Okay. Are there any communications returned for the two
14 Fox Parton accounts at all?
15 A No.
16 Q Not between them and Brianna Walters, nothing else?
17 A So when I did my search warrant, it was just messages
18 between you and Brianna. I'm not going to invade your
19 privacy and take everything you did on those accounts. I
20 just asked for the messages, that's it.
21 Q Correct.
22 THE DEFENDANT: That's everything I have to ask.
23 THE COURT: Okay. Thank you.
24 Any redirect?
25 MR. PASKULOVICH: Yes, your Honor, briefly.

1 REDIRECT EXAMINATION

2 BY MR. PASKULOVICH:

3 Q Do you recall when it was that you submitted the search

4 warrant to Meta?

5 A Yes.

6 Q When was that?

7 A That was on -- actually, I'll have to look at the search

8 warrant if you have it.

9 MR. PASKULOVICH: May I approach the witness,

10 your Honor?

11 THE COURT: I'm sorry?

12 MR. PASKULOVICH: May I approach the witness?

13 THE COURT: Yes, of course.

14 THE WITNESS: I believe it was December 30th.

15 BY MR. PASKULOVICH:

16 Q All right. And would it sound correct to you if you told

17 the Prosecutor's Office to authorize charges December 26th?

18 A Yes.

19 Q So charges were made without even having any of this stuff

20 from Meta.

21 A Mm-hmm.

22 Q In the Meta reports are there specific disclaimers about

23 the type of messages and how long they're kept or how long

24 -- if anything is stored?

25 A There is. It specifically says, like, deleted messages.

1 In their, like, guidelines, too, they purge messages also.
2 They don't keep everything on their server.
3 Q So just because you submit a warrant request for -- or
4 search warrant to Meta doesn't mean you're going to get
5 exactly what you request.
6 A Exactly.
7 Q Now, do they process the warrants immediately or is it by
8 priority?
9 A No. It's priority and it takes time.
10 Q Stalking case like this, how long did it take?
11 A I couldn't even tell you when I got that search warrant
12 return.
13 Q That's okay. I'll move on.
14 Going to People's Exhibit no. 4, I believe that is
15 the Meta records for the John --
16 A Four is Xof Notrap.
17 Q Okay. Could you look at 5, People's Exhibit 5?
18 A Johnald Fettuccini.
19 Q Yes. Within there are there any messages from the
20 defendant to Brianna?
21 A Yes.
22 Q Approximately how many?
23 A One, really only one, two. Two.
24 Q Okay. And were you able to confirm that those messages
25 were received by Brianna?

1 A Yes.
2 Q All right. So there's two separate text messages in that
3 alone. Have you found any other messages to Brianna in
4 the returns -- of the other returns for the other accounts
5 for Meta?
6 A Yes, the Xof Notrap.
7 Q Okay. Now, IP address, you said they didn't match up.
8 A No.
9 Q Can you explain to the jury what you meant? What would
10 need to be matched?
11 A I mean, IP addresses, basically you're at, you know, one
12 place. Your home has its own IP address if you're on
13 wireless Internet or just regular Internet. But, like,
14 you could make -- you can make a Facebook without hooking
15 up to home Internet and just use the data on your phone.
16 Q So when you say "match up" --
17 A And it would give a whole different IP address.
18 Q When you say "match up," are you saying the IP address
19 between the different Facebook accounts aren't the same?
20 A Yes.
21 Q All right. Now, would it be possible if, let's say, one
22 account was created using Internet at a residence and one
23 was used at work? Would that be two different IP
24 addresses, then?
25 A Yes. Yes.

1 Q All right. And are you familiar with VPNs?
2 A Not so much.
3 Q Do you know generally what they do?
4 A No.
5 Q Or if they're commonly used to mask IP addresses?
6 A Oh, yes. Yes. Yeah. I mean, being an investigator, you
7 know, investigating frauds and stuff, you'll have people
8 in different countries that mask their own IP. They're
9 using VPN. Like they can ping off different states,
10 making it look like they're in America when they're really
11 not.
12 Q So did different IP address cause you any concern that
13 it's the same person?
14 A No.
15 Q It'd be true to say that my VPN -- or my IP address right
16 now at the court would be different if I was connected to
17 the court than if I was at home.
18 A Yes.
19 Q All right. And then, lastly, the screenshots you were
20 asked about, they don't appear in the records.
21 A Mm-hmm.
22 Q Had defendant acknowledged those messages, contents of
23 them, in his interview?
24 A In his interview? Yes.
25 Q So at the interview, prior to getting any Meta records,

1 defendant admitted he sent --
2 A Yes.
3 Q -- the messages that appeared in the screenshots
4 received --
5 A Yeah.
6 Q -- by -- or given to you by Brianna.
7 MR. PASKULOVICH: All right. No further
8 questions.
9 THE COURT: Thank you. You may step down.
10 (At 9:38 a.m., witness excused.)
11 THE COURT: You may call your next witness.
12 You can just leave those there. Thank you.
13 You may call your next witness.
14 MR. PASKULOVICH: People rest, your Honor.
15 THE COURT: Okay.
16 All right. And, defense, do you have any
17 witnesses to call?
18 THE DEFENDANT: No, your Honor. Oh, I
19 apologize. Yes, I'll call myself as a witness.
20 THE COURT: Okay. You'd like to testify, okay.
21 If there's any -- actually, Counsel, if you
22 could take all those exhibits right now because it looks
23 like Mr. Parton's going to testify, and if you want to
24 bring any documents with you up to the stand, that would
25 be fine. You might not be able to read from them, but if

1 you need to refer to them.

2 THE DEFENDANT: Okay.

3 THE COURT: So take whatever you think is

4 necessary, and then when you're ready, you'll take the

5 stand.

6 And since Mr. Parton is the defendant as well as

7 acting as his own attorney, I'm going to allow you to

8 testify in a narrative fashion. Tell the Court whatever

9 you'd like, or the jurors, and then you'll be

10 cross-examined by the People.

11 If you could please face me and raise your right

12 hand.

13 Do you swear or affirm the information you're

14 about to tell the Court and the jurors will be truthful,

15 accurate, and to the best of your ability, so help you

16 God?

17 THE DEFENDANT: I do.

18 THE COURT: Thank you. Please be seated. Then

19 I'm going to ask you to state your full name and spell it

20 for our court recorder and our jurors.

21 THE DEFENDANT: Fox Parton, F-O-X, P-A-R-T-O-N.

22 THE COURT: Thank you.

23 FOX PARTON

24 was called at 9:39 a.m. by the Defendant, sworn by the

25 Court, testified:

1 THE COURT: And what would you like to tell the
2 Court and the jurors?
3 THE DEFENDANT: I guess I'll start off with
4 something that -- it's probably pretty apparent to the
5 Court just from my mannerism is that I don't have a very
6 good memory when it comes to things like 6 to 12 months
7 ago. I don't have a clear memory of things that actually
8 happened, and 6 to 12 months ago my memory was even worse
9 because, I mean, I have three different conditions that --
10 I was a chronic abuser of marijuana. Now --
11 MR. PASKULOVICH: Your Honor, I object to -- I
12 don't know if we should be getting into his personal
13 health issues. He's going to be subject to cross.
14 THE COURT: So you need to focus in on the case
15 at hand if there's something specific as it relates to
16 this case.
17 THE DEFENDANT: Okay, your Honor. Well, only
18 for the reason that I already got chronic marijuana use
19 out of my mouth, if it could be less prejudicial to the
20 jury to just see me as that condition to say my other two
21 since that one's probably the most prejudicial.
22 THE COURT: I'm sorry. What did you want to do?
23 THE DEFENDANT: Well, because I have major
24 depressive disorder and PTSD as well.
25 THE COURT: Okay.

1 THE DEFENDANT: Because I had already said
2 chronic marijuana use and then the jury's --
3 THE COURT: Okay.
4 THE DEFENDANT: -- just going to see me as
5 chronic marijuana guy --
6 THE COURT: Okay
7 THE DEFENDANT: -- as opposed to --
8 THE COURT: All right. So what else do you want
9 to explain to the jurors as it relates to this case?
10 THE DEFENDANT: I only bring those things up
11 because obviously a combination significantly affect my
12 ability to navigate the world and remember things. So
13 when it comes to recalling things, like any person I'm
14 very influenced by what's put right in front of me. I'm
15 very influenced by the people around me, especially if I'm
16 afraid of them or in any other sort of state of -- subject
17 to emotional leverage.
18 I do know that I did know Brianna from high
19 school and I know that I had peaceful contact with her
20 during that time. It's not impossible or improbable that
21 I had contact with Brianna over the last year either. So
22 it's not really your place to deny anything that you don't
23 remember, and that may have been the issue, too, at the
24 time of the interview is Mr. Mendez says I didn't appear
25 confused or sluggish or inebriated or anything like that,

1 but when I see myself in that interview, I see somebody
2 from 6 to 12 months ago that was in a different state and
3 was in a more generally confused state, and I think that
4 that's shown multiple points throughout the interview.
5 I think it's also important to note that I
6 admitted to things that the complaining witness never
7 claimed in which the complaining witness directly
8 contradicted. She said that she doesn't think that she
9 ever had anything to forgive me for and she didn't have
10 anything to resent me for. In that interview I stated
11 that I had done something to her to be forgiven for and
12 that that was what I thought this was all about. I mean,
13 so I admitted to things that she says never happened.
14 I think at one point Mr. Mendez says I admitted
15 to operating the Xof Notrap account. I don't remember
16 that from yesterday and I think that's kind of an issue
17 with, you know, now none of us can even remember what
18 actually happened even yesterday over the course of an
19 hour-and-15-minute interview.
20 I seem to remember that I admitted to saying
21 things like calling -- saying that Brianna would be a good
22 dominatrix because she's the coldest person I've ever met,
23 but that would have been probably the meanest thing out of
24 all these communications that have been returned by the
25 warrant or the screenshots that I would have said. You'd

1 think if somebody was afraid of you and wanted to get you
2 off their back, they would probably submit that
3 screenshot. So I don't know if I was just confused or
4 just saying something that I had thought in my head or
5 maybe it came from a completely different relationship,
6 because I admitted to it in the interview, but that
7 doesn't show up anywhere else.
8 She acts like she's never known me. In my
9 memory I did know her, but we don't have any evidence of
10 that. It's just he said, she said. And I could have sat
11 here saying that I had had a long-term intimate
12 relationship with Brianna and it really wouldn't have been
13 able -- nobody would have been able to question it. But
14 my narrative was that I had just been her friend for a few
15 years in high school. At this point I don't even know if
16 that's true.
17 I mean, you think that you have a memory of what
18 happened over a decade ago, but maybe you don't. I don't
19 know if I actually have a good memory of what happened a
20 decade ago or even six months ago or even three months
21 ago. I can't even remember all the details of what
22 happened yesterday.
23 I know or I presume from the fact that this
24 interview exists or that that recording exists that it
25 happened, that I talked to Detective Mendez over the

1 phone, and I showed up for the interview, and according to
2 that footage I said all the things that I said. And I
3 don't feel like sitting here being a conspiracy theorist
4 acting like somebody must have fabricated it or made it
5 all up, but the reality is when you have memory as bad as
6 mine, it's not like somebody couldn't do that. I don't
7 actually remember. I have to be prompted by the evidence.
8 Besides that, I had multiple conversations with
9 Mr. Mendez before I went into the interview. He doesn't
10 remember what the contents of them were. I don't remember
11 what the contents of them were either. I know that I had
12 been accused of various things. I went in there. There
13 were screenshots that were presented to me. I think at
14 multiple points he sat there reading things off to me and
15 just asked me if I agreed or if I had sent them. Later
16 those things weren't corroborated by any returns. I was
17 presented a narrative of what had happened, which was
18 purported --
19 MR. PASKULOVICH: Your Honor, I'd object. The
20 police report's not in evidence, and it seems to discuss
21 the police report, which would then have to be in
22 evidence.
23 THE DEFENDANT: I'm sorry. Where did I mention
24 the police report?
25 MR. PASKULOVICH: You said the narrative.

1 THE DEFENDANT: I was talking about a narrative
2 as in the complaining witness's narrative of what has
3 happened.
4 MR. PASKULOVICH: Okay.
5 THE COURT: Okay.
6 THE DEFENDANT: So I was presented with the
7 complaining witness's narrative of what's happened. It
8 was backed up by screenshots. I don't have any
9 recollection. If somebody -- if I'm walking around in a
10 haze or if you were a person that is a chronic alcoholic,
11 you drink a lot, and you have memory issues and then
12 people come to you and say that you've done something and
13 start accusing you of things and then stick a bunch of
14 evidence in your face like screenshots and say, this is
15 what happened, this is what you did, and you can't really
16 remember, I mean, are you going to sit there -- if you sit
17 there denying it, you don't know if you're actually lying
18 to the police or not. It becomes a very scary situation
19 when you can't remember anything. You're just going
20 through life based on what people put in front of you.
21 And, I mean, it's no doubt in my mind that I've
22 had some sort of a charged or contentious relationship to
23 this other person. Why would I doubt what this person
24 said, though? If I was so infatuated with this person,
25 why would I want to deny what she was saying happened?

1 Why would I want to go against her? I mean, that can have
2 a really big influence on people, too.
3 As I'm talking about this, it sounds strange
4 because I'm talking about it all from, like, a speculative
5 standpoint of what happened in my own life six months ago
6 because all I have to go on is, like you, the evidence
7 that's been presented here because Mr. Mendez -- many
8 other people, they will assert confidently that they
9 remember things, but then they said, what did we talk
10 about on the phone six months ago? I don't remember. Or
11 I remember that you admitted specifically to operating the
12 Xof Notrap account. I don't remember anything like that
13 in the interview from yesterday. Unfortunately, I feel
14 like we're going to have to, like, check the record on
15 that one to see who remembered correctly.
16 So, yeah, I mean, I felt -- I went along with
17 one reality when the evidence was screenshots, and now
18 there's another reality presented to me by the Facebook
19 data. Brianna says she never deleted any conversations.
20 So why should they be missing from the report unless she
21 did delete them and then said that she didn't, which why
22 would someone do something like that? Or why would
23 somebody leave out some of the meanest things that were
24 allegedly said? Either something's wrong with my
25 recollection of what happened at that time or she showed

1 up today pulling her punches for some reason.
2 Those are the two different -- that's the split
3 in reality. I don't know what -- if I had received
4 communications from anybody, whether it was Brianna or
5 Gavin or whoever, telling me to say something, then I
6 wouldn't remember. I can't accuse anyone of anything that
7 I don't remember. But if I had been set up that way, then
8 I would remember. If somebody that I allegedly was in
9 love with told me to do something crazy, would I have done
10 it? Would I have gone and started saying that I had done
11 things and going along with their narrative because I
12 wanted to make them happy? I don't know.
13 THE COURT: Anything else you wanted to tell the
14 jurors?
15 THE DEFENDANT: I don't think -- maybe it would
16 be more appropriate for closing arguments.
17 THE COURT: Okay.
18 THE DEFENDANT: Yeah. I think I'll save it for
19 closing arguments.
20 THE COURT: Hang on just a second. I don't know
21 if the People have any questions.
22 MR. PASKULOVICH: Yes, your Honor.
23 CROSS-EXAMINATION
24 BY MR. PASKULOVICH:
25 Q Are you under the influence of any drugs or alcohol today?

1 A No.
2 Q Were you yesterday?
3 A At one point, yeah.
4 Q Was it while you were at the courthouse?
5 A No.
6 Q Do you have any diagnosed memory loss issues by a doctor?
7 A I'm diagnosed with the three conditions, which are all
8 known to impair memory.
9 Q But have you been diagnosed with memory loss?
10 A No. I don't really interact with doctors. I interacted
11 with a therapist as a result of court.
12 Q So you don't know. You don't have any diagnosis.
13 A No. I don't have a medical diagnosis for memory issues
14 specifically.
15 Q All right. Now, there's People's Exhibit 18 was admitted
16 into evidence. This was the letter that you left at
17 Brianna's house that deputy found, took into evidence.
18 This is on December 21, 2024. Do you recall this?
19 A Is there an objection where you're stating the letter that
20 I left at the house as opposed to the letter which was
21 left at the house?
22 Q I'm asking if you recall this, yes or no?
23 A I don't recall it at all, no.
24 Q Okay. So this -- there's testimony you heard while you
25 were in here, correct?

1 A (No audible response.)
2 Q And in that testimony did you hear that they said no one
3 was there -- no one was there prior to you being on their
4 porch but there was a letter there after you left their
5 porch? Do you remember hearing that?
6 A There was a letter there after I was alleged to be on the
7 porch, yeah.
8 Q Okay. Do you find it interesting that there's a letter on
9 her porch right when you're there, or right after you're
10 there, and you're saying it's not you who left it there?
11 Who else would have left it there?
12 A There's no evidence that I was ever actually there.
13 Q Do you believe that something didn't happen unless there's
14 evidence to support it?
15 A I think it definitely helps to reaffirm that it did
16 happen.
17 Q So if I walk into the hallway and there's not a video of
18 me walking into the hallway, I didn't walk out there?
19 A I mean, a video of you walking into the hallway could be
20 fabricated when you've never actually walked into the
21 hallway, too.
22 Q All right. You spoke about your memory, early memories,
23 with Brianna. You talked about in high school you were
24 good friends with her, all sorts of things like that,
25 correct?

1 A Correct.
2 Q So you can remember all these details back then but you
3 can't remember things from yesterday or throughout the
4 dates of the alleged offense.
5 A The things that I purported to have remembered, which I've
6 admitted might be incorrect from 14 years ago.
7 Q So you're admitting that all the stuff that you claim to
8 remember from high school, your early memories with
9 Brianna, may, in fact, be clearly untrue.
10 A From an objective standpoint, yeah. I mean, I just have
11 to be realistic about my own brain. I have brain damage.
12 Q So it's your reality that you don't know if any of your
13 thoughts are real or fake, or memories.
14 A That's a philosophical question that, like, affects
15 everybody.
16 Q I'm asking you is that fair to say? Do you not know what
17 thoughts are real and which are fake?
18 A I wouldn't go that far, what thoughts are real and what
19 thoughts are fake. I know what thoughts are in my head
20 right now, but it doesn't mean that my recollection of
21 what thoughts I had ten years ago are accurate.
22 Q In the year 2024 did you message Brianna at all?
23 A I don't remember.
24 Q You don't remember if you messaged her one time.
25 A I don't remember anything like that.

1 Q Did you possess any Facebook accounts in 2024?
2 A Did I possess Facebook accounts?
3 Q Yes. Do those accounts still exist?
4 A Yeah. I have my account, Fox Parton.
5 Q And have you gone through those and seen messages with
6 Brianna?
7 A I don’t have anything in my inbox between me and Brianna.
8 Q Did you provide that to the detective to show there are no
9 messages?
10 A No, I haven’t provided that to him.
11 Q So you asked a lot of questions about messages being not
12 in the official records, and one of the things that
13 Detective Mendez said was that if they’re deleted, then it
14 may not be in the business records. Did you delete the
15 messages and prevent them from being in the official
16 records?
17 A I wouldn’t be able to tell you if I did.
18 Q Isn’t it possible that you deleted them so that they
19 weren’t in the official returns?
20 A If I had deleted them, they would have still been on a
21 server if Brianna had them.
22 Q You currently work information technology, correct --
23 A No.
24 Q -- or formerly did?
25 A I worked information technology five years ago.

1 Q So you're savvy with computers and messages.
2 A I used to be.
3 Q How do you remember that you used to be? I thought you
4 can't remember things.
5 A Again, maybe I never was an IT specialist and never worked
6 at the defense logistics agency. Maybe this is inception,
7 but to my recollection I worked in IT and I was savvy.
8 I've smoked a lot of marijuana since then, done other
9 drugs. I'm not as savvy anymore as I used to be.
10 Q Do you recall PPO hearings with Brianna?
11 A Do I recall what?
12 Q The PPO hearings.
13 A If I tried to speak to them from memory, I'm afraid I
14 would say something --
15 Q Do you remember them, yes or no?
16 A I don't remember the contents of them, no.
17 Q Do you remember being at the meeting, yes or no?
18 A I do remember being at the meeting.
19 Q Do you remember getting to directly address Brianna
20 yourself?
21 A I was allowed to cross-examine her during the initial
22 hearing, to my knowledge.
23 Q And that's the first time you were able to get her
24 attention, correct?
25 A To my knowledge, I guess.

1 Q Then you contested. Again, there was a second hearing,
2 correct? You and her would be both be in the same place.
3 A Yeah. I did a motion to either dismiss or modify because
4 I was concerned because she submitted for the PPO using
5 the time that she came to the town where I lived and saw
6 me at the Walmart that I go to regularly. I was concerned
7 about the provision in the PPO that states that if you
8 appear within the line of sight, that could be a violation
9 and you can be incarcerated for up to 93 days just because
10 they saw you in a public place. And the judge and the
11 officers and everybody says, oh, well, just run away, just
12 run away when you see them and it will probably be okay.
13 But that didn't really satisfy me because I don't
14 really want this person to be able to get me sent to jail
15 just because she sees me at a Walmart --
16 Q You remember a lot of --
17 A -- near my town.
18 Q -- specific details for two hearings that you don't
19 remember anything about.
20 A That's very important to me because it could get me sent
21 to jail.
22 Q So you can remember. You just said earlier you can't.
23 You said you remember the meetings. You don't remember
24 the contents, and now you just spewed out very --
25 A I remember what I --

1 Q -- very specific things.
2 A -- I remember what I submitted. I remember what I
3 submitted because there's only two boxes that you have to
4 check, dismiss or modify, and it was very important to me
5 that I don't let this person have that power over me to
6 try to get me sent to jail just because he sees me in my
7 town.
8 Q Do you recall talking to Detective Mendez and asking if
9 you represent yourself if you get to talk to Brianna?
10 A Do I what?
11 Q Recall asking Detective Mendez that if you represent
12 yourself you get to speak directly to Brianna.
13 A I don't remember ever asking him anything like that.
14 Q Do you remember asking about the court process at all?
15 A I've talked to Mr. Downer as my limited --
16 Q Mr. Mendez. I'm sorry, Detective Mendez.
17 A Talking to Mr. Mendez about court procedures?
18 Q Detective. Yes.
19 A I don't think we ever had a discussion about court
20 procedures.
21 Q So it's fair to say you do remember some of the
22 discussion.
23 A I have memories. It's not like I can't -- just like
24 anybody else, I can say I remember this, I remember that.
25 I think my own memory should be treated with skepticism,

1 and that's just being realistic.

2 MR. PASKULOVICH: Just one moment, your Honor.

3 BY MR. PASKULOVICH:

4 Q We stopped the interview video yesterday a little bit

5 short. Would you contest that there were discussions

6 about court and the court process and self-representation,

7 things of that sort, with the detective in that period of

8 time?

9 A In the last 15 minutes of the video?

10 Q Yes. Does that jog your memory?

11 A Us talking about court process. When you say court

12 processes, can you specify? What do you mean?

13 Q Asking about coming to court, different things,

14 representing yourself, and what to expect.

15 A I don't remember asking anything about that at that time.

16 Q Okay. When you wrote the letter that was left at

17 Brianna's house, you apologized for violating her

18 boundaries.

19 A Mm-hmm.

20 Q That was prior to speaking to police. What boundaries

21 were you talking about?

22 A I can't speak to that.

23 Q Why?

24 A I don't know whether I actually left a note or not. I

25 don't remember its contents.

1 Q Do you remember being contacted by Brianna at all in 2024?
2 A No.
3 Q Do you just not know, or is that an unequivocal no?
4 A I don't remember being contacted by Brianna at any point,
5 no.
6 Q Do you remember looking her up at all?
7 A No.
8 Q Never remember being without her on your mind?
9 A I mean, you're asking somebody that I remember being,
10 like, my high school crush. Did I ever type her name into
11 Facebook and go see her public profile? I mean, I'm just
12 being honest. Yeah, I've done that with a lot of people.
13 Q You were actually informed in one of the court hearings
14 that she had a new last name, didn't you?
15 A It was reflected in the report that I was given. I had no
16 idea what her last name was until then, and I believe, if
17 I'm correct -- I might be incorrect -- in that interview I
18 stated I didn't know what her married name was.
19 Q Did you look it up?
20 A I never looked it up at all. It was given to me by law
21 enforcement in the police report.
22 Q You made a comment about how you think she wants you in
23 jail, something of that sort.
24 A When did I say that?
25 Q It sounded like you said coming to court, meaning in jail.

1 Correct me if I'm wrong. If you don't recall any of that,
2 I may be wrong, and I withdraw that question.
3 A I'm sorry. I don't understand the question.
4 Q Did you say that you wanted Brianna -- that Brianna thinks
5 -- that Brianna wants you in jail, if that's what your
6 thought is? Did you ever say that?
7 A When would I have said that?
8 Q I'm asking do you recall saying it?
9 A Just ever in existence?
10 Q Do you believe that Brianna wants to put you in jail?
11 A I don't know. I don't really know what's going on with
12 that person.
13 Q Do you have any hostility for her for these charges going
14 on?
15 A No. I think I've said that multiple times.
16 Q So are you officially contesting every single screenshot?
17 These messages, all of them, you're saying none of them
18 are from you, or are you saying you don't know?
19 A I'm not agreeing to any screenshots that are submitted by
20 a complaining witness that aren't backed up by anything
21 else. If I agreed that, even without proper memory, that
22 I said one thing or another thing in a gigantic mountain
23 of screenshots, then someone can slip anything in that
24 they want. There's already one instance of the husband
25 claiming that I was talking about weapons and guns a lot,

1 and that's --
2 Q So you're not contesting, then, because you don't remember
3 them or because they're not you. You're contesting them
4 because there's nothing to back it up evidence --
5 evidence-wise.
6 A Yeah. I'm contesting it because it's a really dangerous
7 precedent to convict someone.
8 Q So it's not about truth and what you remember and it
9 actually being you. It's about the precedent you care
10 about when you're advocating for and trying to bring
11 today.
12 A I'm sorry. Can you rephrase that in, like, an easier --
13 Q So you're not contesting these screenshots because it's
14 not you. You're not saying, these weren't me that sent
15 it. I don't remember, so I'm contesting them. You're
16 contesting them because there's no, quote, evidence to
17 back it up and you think it's a, quote, dangerous
18 precedent.
19 A I did think it's a dangerous precedent. It's just a blank
20 white page with a picture of me and my name and then you
21 can put anything that you want on there. So, yeah --
22 Q And you're using the court hearing today, this criminal
23 matter, for precedent and not truth.
24 A I contest it because I'm not agreeing to anything that I
25 don't actually remember that's going to incriminate me in

1 something.
2 Q So now it's you don't remember. Is it the precedent, you
3 don't remember, or both? You said a lot of different
4 things.
5 A I think it's both.
6 Q Don't you think it's something you should know? That's my
7 last question.
8 A I'm sorry, what?
9 Q Don't you think that's something you should know if you're
10 contesting something because you want to create precedent,
11 you don't want dangerous precedent, or because it's not
12 true because it wasn't you?
13 A I mean, okay. I affirm that it's not true. I contest it
14 because I don't believe it's true.
15 THE COURT: Thank you.
16 All right. I think you indicated that you had
17 some things you'd like to state at closing arguments, and
18 we'll give you an opportunity to do that as well.
19 Otherwise, you're all set.
20 THE DEFENDANT: Oh, do the closing arguments
21 now?
22 THE COURT: No, not right now. You can step
23 down.
24 THE DEFENDANT: Oh, thank you.
25 (At 10:07 a.m., witness excused.)

1 THE COURT: But this might be a good time to
2 take about a five-, ten-minute recess. We'll let the --
3 I'm just confirming. You indicated you had no witnesses
4 except yourself, correct?
5 THE DEFENDANT: That's correct, your Honor.
6 THE COURT: Any rebuttal witnesses?
7 MR. PASKULOVICH: No, your Honor.
8 THE COURT: Okay. So we're going to take about
9 a five-, ten-minute recess, let the parties have some time
10 to get their thoughts together. Then we'll go into
11 closing arguments. I'll give you your jury instructions
12 and then you can go back and deliberate. If you just want
13 to leave your notepad on your seats, and we'll be back
14 with you in about ten minutes. You're all set.
15 All rise for the jury.
16 (At 10:07 a.m., jurors exit courtroom.)
17 THE COURT: Okay. We'll give you about ten
18 minutes to get your thoughts together as it relates to
19 your closing and then we'll go -- and the jurors can take
20 a bathroom break and then we'll resume. Thank you.
21 MR. PASKULOVICH: Thank you.
22 (At 10:08 a.m., court recessed.)
23 (At 10:28 a.m., court reconvened.)
24 THE COURT: Recalling Parton, 24-7808. Your
25 appearances, please.

1 MR. PASKULOVICH: Good morning. Kyle
2 Paskulovich appearing on behalf of the People.
3 THE DEFENDANT: Good morning. Fox Parton
4 representing myself.
5 THE COURT: Thank you.
6 MR. DOWNER: Harold Downer, standby counsel for
7 Mr. Parton.
8 THE COURT: Great. You can be seated. And are
9 we ready to proceed with closing arguments?
10 MR. PASKULOVICH: Yes, your Honor.
11 THE DEFENDANT: Yes, your Honor.
12 THE COURT: Okay. Sounds good. We'll bring the
13 jury in.
14 COURT CLERK: All rise.
15 (At 10:29 a.m., jurors enter courtroom.)
16 THE COURT: Okay. Please be seated.
17 You can see that we've taken your notepads away.
18 We're ready for closing arguments. So as I had indicated
19 to you before, that's not evidence, but it is a chance for
20 each side to express their theories of the case. So with
21 that we'll have closing arguments and then we'll go right
22 into jury instructions.
23 Go ahead.
24 MR. PASKULOVICH: At the very beginning I said
25 this was a simple case about a woman refusing to leave --

1 or a man refusing to leave a woman alone. I still think
2 it's that simple. We've heard a ton of evidence, and
3 there's one thing that's been completely clear the entire
4 time. Brianna never has engaged in contact with the
5 defendant. She never wanted it and she expressly asked
6 him to stop in October. There's one thing that's also
7 very clear. Defendant refused to stop every single time.
8 He would not let go.
9 After years of speaking -- not speaking to each
10 other, defendant starts sending messages to her online.
11 Then you hear from Brianna that on June 27th her and her
12 fiancé at the time were at home and defendant shows up at
13 their door -- shows up at their door. Fiancé recognizes
14 him because of all the messages he had been sending. She
15 shows fiancé those messages. He knows who the guy is. He
16 thinks quick and says, no, she moved. Defendant goes on
17 his way. What does he do? He goes to the victim's mom's
18 house. Doesn't just go home. Shows up there, goes to the
19 mom's house and leaves items there.
20 Messages continue after that, numerous accounts.
21 You're going to see in all the exhibits when she blocks an
22 account from the defendant, literally minutes later he'll
23 go on a new account. The timing all adds up. He cannot
24 take the rejection. He just has to keep going.
25 All of the exhibits that have been shown, there

1 are a lot of them, you guys can go through and look at all
2 the messages, all the content, and it just is repetitive.
3 You'll see nonstop, and those are just the messages that
4 have been submitted in evidence.
5 Brianna talked about how after the first time he
6 came to the house she felt scared, and obviously her
7 fiancé was scared. He called the police. You heard the
8 911 call. You don't just call the police if you have no
9 fear. Brianna said she had to start changing things she
10 did regularly. She wasn't gardening, got cameras, all
11 because this person from years ago will not leave her
12 alone for unknown reasons.
13 October 2024 she said, quote, Fox, your messages
14 are unwanted and made me uncomfortable. I'm asking you to
15 stop contacting me immediately. There's no mixed signals,
16 no ambiguity. There's nothing about that that can make
17 someone think maybe they still want to talk to me. But
18 what does the defendant think? Maybe she still wants to
19 talk to me.
20 Messages keep going on and on and on. Then
21 there's finally they're in Walmart. Sure, maybe it's a
22 coincidence that they're both at Walmart. Brianna says
23 she's followed throughout the store with defendant
24 repeatedly saying hi to her.
25 You're going to hear a lot about the word

1 reasonable in the jury instructions from Judge Carniak,
2 and I think it fits with this too. Is that reasonable
3 behavior? All this stuff, none of it's reasonable. Using
4 social cues you all know to be true, using your common
5 sense, which you can use, how would you all feel if you're
6 followed -- or if you're in Walmart and someone's walking
7 around the store, waiting to exit with you, repeatedly
8 saying hi after months of messages, you being ignored when
9 you ask them to stop contacting you, and the person's
10 showing up at your house? So that's October.
11 Now we go to December where Brianna, again, is
12 at home with her husband. Defendant shows up at the
13 house, knocks on the door. Doesn't just stay there for
14 five or ten minutes. He's there fifteen minutes just
15 repeatedly knocking and he has a letter with him, the
16 letter the deputies get. You'll be able to read the
17 letter. In there he talks about how he knows he violated
18 her boundaries. He acknowledges all the stuff that he
19 does and he still keeps it -- in the letter he keeps hope
20 that they'll still talk.
21 All of his messages have the same theme. He
22 knows she doesn't want to be contacted, but he hopes that
23 there's some sort of ability for them to talk anyways.
24 He'll say, I know you don't want to hear me. Please just
25 talk to me. Don't call the police. He said that before

1 she ever called the police.

2 The messages, I understand you don't want to

3 hear from me, but I'm going to reach out anyway. I know I

4 shouldn't be messaging you, but I'm struggling. Please

5 don't call the police. I'm just trying to talk. That's

6 not someone who's confused about their ability to contact

7 someone. When you say those things, you know the person

8 does not want contact from you.

9 In the admitted exhibits, you can read all of

10 those quotes, all the things that are said like that from

11 the defendant.

12 Detective Mendez testified he got the messages

13 in the form of a screenshot from the victim. What's

14 interesting is in the video you saw, there's a lot of

15 records to those messages from the various Facebook

16 accounts acknowledging that the screenshots are true. But

17 another thing you can do, look in the actual messages.

18 They'll reference -- they cross-reference each other and

19 so do the messages that are sent in the Meta returns. It

20 all intertwines coupled by the defendant's admissions

21 throughout the case.

22 We've heard about video integrity. We were

23 asked how we store the videos. We've been asked about if

24 the Meta records are actually complete, if things are

25 being -- are missing. There's been a lot of doubt cast.

1 And finally when it seems like that wasn't really working
2 because we were able to get past it, we heard from the
3 defendant that his memory is cast. We've every single
4 thing. It's him. He doesn't remember. He has -- then he
5 says he can remember some things but not others. It's the
6 video, how it's stored. It's the Meta records.
7 This, I just have to prove, beyond a reasonable
8 doubt. It is clear beyond a reasonable doubt, and when
9 you look at the judge's instructions -- or when the judge
10 gives you instructions, it'll be proven beyond a
11 reasonable doubt that defendant sent those messages.
12 So what I've proved to you is that the defendant
13 committed two or more willful, separate, and noncontinuous
14 acts of unconsented contact with Brianna Walters, or
15 Brianna Kennard. Unconsented contact means that the
16 defendant initiated or continued contact with Brianna
17 Walters without her consent and includes -- can include,
18 like, seven different things. Some of them are following
19 or appearing within sight of Brianna, approaching Brianna
20 on public or on private property, appearing at Brianna's
21 home or workplace, entering property owned, leased, or
22 occupied by Brianna, contacting her by phone, sending an
23 electronic communication, placing an object on or
24 delivering an object to property owned, leased, or
25 occupied by Brianna.

1 We have dozens and dozens and dozens of
2 messages. But let's forget the messages. If we don't
3 have the messages, which each message is a contact, we
4 have a letter being dropped off at her house, him
5 appearing at the house two different occasions, multiple
6 people, her and her husband, seeing him there. He admits
7 going to her house when talking to Detective Mendez.
8 Though we just need two, two unconsented contacts.
9 Well, it's unconsented because she never asked
10 for it or has any sort of relationship with him that would
11 make him think it's okay. If there's anything that's
12 unclear, after October when she explicitly tells him to
13 leave her alone, that's unconsented.
14 Second, that the conduct would cause a
15 reasonable individual to suffer emotional distress.
16 Again, the word reasonable. I think it's very reasonable
17 for a person to be suffering emotional distress from
18 someone constantly sending messages and showing up at your
19 house, and you guys will have to use your own common sense
20 and judgment with that, but I think the facts in evidence
21 will lead you to believe that it's something that would
22 make someone suffer emotional distress.
23 Third, that it did cause Brianna Walters to
24 suffer emotional distress. We've heard about how she
25 changed her life. We heard about how it impacted the

1 beginning of their -- her marriage with her husband, how
2 she didn't garden and do things that she used to, how she
3 got security cameras. She talked about how she constantly
4 felt uncomfortable, uneasy, that there is evidence that it
5 did cause her to suffer emotional distress.
6 Just one moment. The fourth thing is the
7 contact would cause a reasonable individual to feel
8 terrorized, frightened, intimidated, threatened, harassed,
9 or molested. She talked about fear. How many times did
10 you hear Brianna say she felt scared, frightened? That
11 all there goes to that one.
12 Fifth, the contact caused her to feel
13 terrorized, frightened, intimidated, threatened, harassed,
14 or molested. So if one of them it would cause them, the
15 next is it actually did. Looking at the conduct occurred
16 by the defendant, I think all of you can look at that and
17 see that a reasonable person would feel that way and that
18 Brianna actually did.
19 Now, we're going to hear the defendant's story.
20 We heard a lot of things on the interview. We heard a lot
21 of things about how he doesn't remember what happened, how
22 he is just here because he can't say if it happened or
23 not. Well, I think that it's important to look at his
24 body language, his demeanor, and his motive, and the judge
25 will give you instructions on how to assess credibility.

1 And some of the things are looking at the way they conduct
2 themselves, the way they answer questions, body language,
3 things of that sort. I want you guys, if you can recall,
4 to remember the body language of the defendant while he
5 got to help cross-examine Brianna. The questions that
6 were asked, was there a reason those were asked? Think
7 about the motive behind the questions, how he appeared
8 when he got to ask those questions.
9 Think about how he testified he got to ask those
10 very same questions -- or he got to ask questions about
11 this incident at the PPO hearing and how Brianna described
12 his behavior there.
13 You all are not required to believe every
14 witness. It's up to you guys to decide if you believe a
15 witness. And I think putting it together you'll see that
16 we have Brianna here today. Someone wouldn't leave her
17 alone. This is now the third court hearing. She had the
18 two PPOs, she said, and now she testified yesterday, all
19 day, when she just wanted to be left alone. What's her
20 motive? Where's the motive for her to come here and
21 fabricate these things? There is none. What's the motive
22 of the defendant to be here today? He just wanted to be
23 with her. She wanted to be left alone. He wanted to be
24 with her.
25 So I think consider everything. Go through the

1 exhibits. You can ask for the video, the interview. You
2 can watch it again, anything. Judge will give that to
3 you. Just send a note, and take your time doing so and I
4 think you'll find the defendant guilty as charged.
5 THE COURT: Thank you.
6 Go ahead, Mr. Parton.
7 THE DEFENDANT: Your Honor, ladies and gentlemen
8 of the jury, today we've been told in total three
9 different stories overlapping with no shortage of holes.
10 You've got the story told by the complaining witness, rife
11 with contradictions and questionable excuses. You've got
12 the story told by the warrant return, which says most of
13 the electronic communications never happened. You've got
14 the defendant's alleged admissions, which contradict the
15 witness's own account of what happened in ways that only
16 create more questions.
17 We talked about how I had multiple conversations
18 over the phone and in person with Detective Mendez before
19 the recorded interview. During that time I was already
20 told all of the things that I had been alleged to have
21 done. When you see me in that video, presuming that
22 there's been no tampering or no technological concerns,
23 you see a somewhat confused person who talks a bit slower
24 than I do, appears to have a poor memory like I do, and
25 maybe even be intoxicated.

He doesn’t actually know what date he was supposed to have been at Brianna’s house until the officer reminds him that it was Saturday. He doesn’t know what the address is when the investigator asks him. When he admits going to the complaining witness’s front door, it seems difficult to have pulled off given the other facts of the case.

When the complaining witness’s husband called the police, he claimed the defendant had been knocking at the door nonstop for 20 minutes straight before he called and was still knocking when the call was first initiated. He may have been in a different part of the house. At one point they said that they were watching me through a window as it was happening. I don’t remember any sort of a knocking in the background during that phone call.

The responding officer stated he was on the scene in only around five minutes after receiving the call. It’s reasonable to presume that the response time was similar for the event in June. During that instance, the complaining witness’s husband said that my vehicle had been parked in front of their house, but no description of my vehicle is given.

No forensic evidence has been submitted to link me to have being in those places. The responding officers saying that they got there in around five minutes say they

1 didn’t see me there. They didn’t see any cars leaving.
2 They didn’t see anything like that. There’s supposed to
3 have been gifts and notes, but law enforcement and
4 prosecution can’t offer any forensic evidence linking me
5 to any of that.
6 There’s an important principle in law my limited
7 counsel and I have discussed, which is called corpus
8 delicti. It states that defendants should not and cannot
9 be convicted based on admissions alone if other evidence
10 cannot corroborate those admissions. This is an important
11 rule that’s existed for a long time because there are all
12 kinds of situations where people open their mouths to talk
13 about something but don’t actually know what they’re
14 talking about. They could be in all kinds of states of
15 mind due to drugs or alcohol. They could be influenced to
16 say things by other people, particularly law enforcement
17 officers that may unintentionally prime the suspect by
18 telling them things they should admit to or telling them
19 that they already know that they did things. We already
20 know that you did that. Which can be extremely confusing
21 to someone who’s already in a confused state of mind. The
22 officers told me that they already knew I was Johnald
23 Fettuccini and that I had been to Brianna’s house and left
24 her a note. During the interview I was shown screenshots
25 and had messages I was supposed to have sent read off to

1 me. This had already happened in conversations with the
2 detective before recording ever started, over the phone
3 and in person at the substation.
4 When you have law enforcement coming at you
5 saying things like that, and maybe you were on a bender,
6 maybe you were drunk for three weeks -- I'm not saying
7 that that's what had happened, but if you honestly don't
8 remember, maybe I did something that I regret, maybe I did
9 something wrong, law enforcement comes to you and tells
10 you that you did these things, are you going to risk being
11 implicated and lying to law enforcement? I wanted to get
12 out of there. I wanted to be free. I was released on
13 personal bond. I've been walking around free for six
14 months, during which time no allegations have thankfully
15 -- no additional allegations have surfaced, although they
16 certainly could have, whether or not it was actually me.
17 Some of the things you hear the defendant admit
18 to from memory in the interview, like as we discussed
19 already, aren't actually corroborated by any screenshots
20 or complaining witness testimony. It doesn't match up
21 with the story that she tells. It doesn't match up with
22 the Facebook warrant return, which shows that no
23 conversations ever actually occurred between my main
24 accounts and Brianna.
25 Brianna stated she had never deleted any

1 conversations. Facebook says that you can still return
2 that data for up to 90 days after it's been deleted by
3 both parties, but if one party has never deleted it, then
4 it'll still show up. There is -- the prosecution at one
5 point mentioned a new system on Facebook which is applied
6 to some conversations. I'm not sure if you have to opt
7 into it yourself or if it's just applied automatically,
8 but private end-to-end encryption, and the excuse is that
9 a warrant return won't return a private encrypted
10 conversation. But Facebook says that even in that event,
11 metadata like timestamps and send and receiver info is
12 still returned, just not the content of the messages.
13 That's the part that's encrypted. So even if these had
14 been private encrypted conversations, something still
15 would have been returned by the warrant to indicate that
16 they had actually happened.
17 The defendant confessed to telling off or
18 insulting the complaining witness at some point when they
19 were 14, claims that they were close friends for 4 years.
20 The complaining witness tells no such story, says she
21 doesn't think she had anything to forgive the defendant
22 for, says they only hung out one time for a school
23 project. So which side of that story is true? Her -- if
24 I were to go into -- agree with her side of the story or
25 her telling of the story, it would actually make me look

1 better. Why do my admissions make me look worse than the
2 actual complaining witness's testimony? Either the
3 complaining witness who never initiated the report on the
4 defendant herself came to trial deliberately pulling her
5 punches, deleting conversations that she claims she didn't
6 delete, leaving out things that she thinks might be more
7 harmful than helpful to me in whether or not I actually
8 get convicted off of all this, attempting to cast me, the
9 defendant, in a milder light by withholding testimony that
10 could have been damaging or the defendant's ability to
11 remember and understand the course of events was confused
12 or influenced by other factors to the point of being
13 totally unreliable.
14 One aspect of this story I believe is true,
15 which I admit to, is that I have had some sort of prior
16 relationship to Brianna, but that's all he said, she said.
17 And like I said before, I can't and won't accuse anyone of
18 anything that I don't actually remember. But you do have
19 themes throughout the content of these alleged messages of
20 romantic dominance and submission when someone appears to
21 be under another person's spell. You have to treat
22 confessions related to that person with even more
23 skepticism because if a person as would be evidenced by
24 these messages does have some sort of issues with
25 masochistic or submissive desires or fawning for a certain

1 partner, they can definitely be influenced to tell stories
2 the way the other person in question would like them told.
3 The prosecution came here today hoping that the
4 admissions in that video would be enough to convict me in
5 lieu of any additional evidence, but it violates the
6 extremely important principle of corpus delicti.
7 Confessions brought about by police investigation have
8 been consistently found over and over again to be
9 unreliable in determining the facts in court. Defendant
10 confessions are constantly disproved by actual evidence.
11 If for no other reason than when police act like they
12 already know what you did, people become afraid to look
13 like they're lying to police. They'd rather confess to
14 the crime than trigger additional scrutiny and hostility
15 by appearing uncooperative.
16 It is true that I have significant memory
17 defects. That's why I have no choice but to view this
18 interview from six months ago with skepticism because I
19 can't clearly remember that far back. I have to rely on
20 the video to remind me of what happened, otherwise it may
21 as well never have happened. The officers in the
22 recording both have to deal with high caseloads, just like
23 this court. They may say they can discuss an hour-and-15-
24 minute interview from six months ago with certainty, but
25 Mr. Mendez already admitted to not being able to remember

1 any of the phone conversations between him and myself from
2 six months ago. There's no doubt he has to watch the
3 video to jog his memory, and without any chain of custody
4 or digital forensics to prove that the video hasn't been
5 tampered with, I'm sorry, but there's also a distinct
6 possibility that hasn't actually been disproven in any
7 way, that in today's world when consumer tools can
8 realistically edit videos in ways such that the human eye
9 can't detect that anything's been manipulated or edited, a
10 $20 monthly subscription to Adobe can give you access to
11 an AI video editing tool plus a voice cloning tool and you
12 can make a suspect in a video confess to anything that you
13 want.
14 Judge Carniak at one point wanted to clarify if
15 I was accusing anyone of anything when I bring something
16 up like that. I'm not. I'm not stating with any
17 certainty or defiance that the video that was shown was
18 fake, but what I am saying is that law enforcement
19 standards require some sort of a digital chain of custody
20 to prove that digital evidence hasn't been tampered with,
21 and there's been questions this whole time about passing
22 the baton between departments and between people and where
23 was this evidence for four months? What's going on? Why
24 are there duplications of it in what was given to me? Why
25 are there things saying that it was recorded May 9th? Why

1 are all these questions surfacing at all?
2 As everything is moving faster and faster in
3 today's world, people need to be more aware of these
4 things and demand chains of custody, demand these types of
5 digital forensics evidence so that we don't have the
6 question, that there's reasons that these procedures
7 exist. So if no chain of custody has been provided, that
8 affects the weight of the evidence. It's just that
9 simple. I mean, it seems -- and it is very scary. I
10 mean, the world we live in now is scary if you think that
11 people can fabricate something like that without much
12 difficulty if they have any scrap of resources. They can
13 fabricate videos that look just like this, all these
14 people sitting in this courtroom with the faces and the
15 hands and everything now. In the last three years, that's
16 how good it's all gotten.
17 Most of my case here, this whole binder full of
18 papers, not that my limited counsel hasn't helped me, but
19 none of my defense would be possible if I didn't have
20 ChatGPT. It only came out three years ago. ChatGPT can
21 also be used -- we heard about the complaining witness
22 talk about a consistency of style across messages. That's
23 obviously very subjective if you decide that one sentence
24 is a person's style and not another person's style, but
25 even style can be very easily fabricated by just taking

1 messages written in somebody else's tone, plugging it into
2 ChatGPT saying, hey, give me some more stuff that looks
3 like this, and you got it.
4 So you might argue this. How do we -- we have
5 all of this very emotional, very convincing testimony on
6 both sides, and that's what appeals to most people's
7 brains, right? You have a very compelling, emotional
8 story that makes it appear as if something very dramatic
9 happened. Then we have data that comes back from Facebook
10 that says 90 percent of this never actually happened. We
11 don't really know why. So you might argue how do we know
12 that the Facebook warrant return wasn't tampered with if
13 we were just talking about chain of custody issues? You
14 say you don't want to believe that reality.
15 I think that the warrant could have been
16 tampered with. The screenshots are the things that are
17 real. Either at Facebook or once the document was in the
18 custody of the State, something happened to it.
19 Law enforcement received their return January
20 7th, but it didn't make it to the public defender's hands
21 until four months later on May 9th. There's no chain of
22 custody documentation. There's no signature hashing.
23 There is a certificate of authenticity provided by Meta,
24 but this is just another document with an employee's
25 signature on it. There's still no digital track record

1 for the document each stop it took on the way to this
2 courtroom.
3 But if you do want to doubt the integrity of the
4 warrant return, then you have no choice but to doubt the
5 integrity of the interview video because that means it,
6 too, could have been tampered with, at which point you're
7 probably realizing there's no way to know what the heck is
8 actually going on.
9 This is an issue which affects courts far beyond
10 this case. It's up to any private individual that finds
11 themselves involved in any legal proceedings to become
12 more aware of and challenge and demand technical evidence
13 that the primary evidence related to any crime that
14 someone may be accused of hasn't been altered.
15 Why were there so many breakdowns in getting
16 evidence from one place to another, the late disclosures
17 and the fact there's still video files I was never given
18 access to in order to review the different angles for the
19 interview room? Why all the confusion surrounding the
20 pass off through law enforcement systems to prosecution
21 systems to public defense and then finally to the
22 defendant and then to the court? This seems like
23 something that shouldn't be a question. There shouldn't
24 be any question as to this. I think that alone, while
25 seeming kind of conspiratorial, would be reasonable doubt.

1 I would have to live with the legitimate fear
2 over the course of this proceeding that evidence may not
3 be the same by the time it hits court versus the time I
4 was able to review it. To my knowledge, to my memory, as
5 good as it is, I don't think that's happened. I don't
6 think that anything's changed from the time I reviewed it
7 to the time that it showed up today.
8 It's not an accusation against anyone in this
9 courtroom that's showing up to do their job, but when you
10 have a -- no offense of bureaucratic organization, that
11 can be in many ways stretched thin as I've seen with the
12 heavy caseload that this court deals with, and cyber
13 security is a field that is resource intensive,
14 complicated, and moves fast, and if expertise is spread
15 thin, there can be gaps. Not to discredit Detective
16 Mendez, but he described himself as not really being a
17 technology guy. He came here to speak on behalf of the
18 warrant return, but he can't speak to the chain of
19 custody. He says he's not really the guy to talk to about
20 whether or not the data has been tampered with.
21 So we don't actually have, you know, what they
22 would call a digital custodian here today to verify the
23 authenticity of any of the evidence that's been presented,
24 and that's absolutely critical. It calls into question
25 whether foundation was ever really properly laid, I think.

1 Even if you agree with the prosecution's story,
2 if we backtrack and we say that all of the emotional
3 stories were true, you have what would appear to be an
4 issue that as opposed -- you see what happens when I try
5 to speak without notes. You got a very confusing story
6 either way. You got a story with a lot of gaps either
7 way. You have what appears to be someone that struggles
8 with some sort of mental illness or infatuation with
9 another person. That person, according to their claims,
10 not backed up even by the screenshots that they've
11 submitted that over the past two or three years this
12 person ignored the other person, never made any efforts to
13 block them or tell them that contact was unwanted until
14 three years later, passively accepting fawning, romantic
15 content, flattery, poetry, songs, apologies, somebody
16 begging for forgiveness for something that happened in the
17 past, calling police months before even having been
18 alleged to make any communication to the person, giving
19 them any heads up, specifically requesting when police are
20 first called that the person not be given any warning,
21 that the person not being informed that there was any
22 issue so that the issue could continue for months longer,
23 911 calls that are made by the complaining witness's
24 husband as opposed to herself with no other reports in
25 between, suggesting maybe another side of the story.

1 Is the complaining witness actually afraid or
2 did they sit in fear for multiple years collecting
3 flattering content, or around the times that the reports
4 were made, was she really just afraid of what her spouse
5 would think, or fiancé and then husband? Where does the
6 fear actually get generated from? Where are the
7 consequences actually coming from in her mind in that
8 situation?
9 The justice system is set up so that you can't
10 convict someone unless it is beyond any reasonable doubt
11 that a crime has been committed, and we have the justice
12 system primarily through incarceration serves the purpose
13 of removing somebody that's a danger to the rest of us,
14 somebody that's going to -- has a higher risk -- a much
15 higher risk of other people as demonstrated by their
16 behavior evidenced in court that they might harm other
17 people. So we put them in jail.
18 MR. PASKULOVICH: Your Honor, I'm letting a lot
19 go --
20 THE COURT: I know.
21 MR. PASKULOVICH: -- but this is totally
22 inappropriate about sentencing.
23 THE COURT: You've been -- it's been about 25
24 minutes now. Are you getting ready to wrap things up?
25 THE DEFENDANT: Yes, your Honor. Just give me

1 -- I'll just collect my thoughts and move into a
2 conclusion.
3 The statute states that for the elements of the
4 crime to be met there needs to be two or more unconsented
5 contacts in a willful course of contact as in the
6 individual in question should know that the behavior would
7 be threatening or harassing and engaged in it anyway,
8 which it's not -- as I've spoke with my limited counsel,
9 it's not required to give a no contact message, but it's
10 difficult to assume that somebody has engaged in a willful
11 course of conduct if there's no indication to stop.
12 This, of course, hinges entirely on was there
13 any indication a long time ago in the past, but I would
14 argue that if the screenshots are authentic, if I admitted
15 in the interview that I had been blocked all the way back
16 in high school, why would I be able to send any messages
17 through my main account now? And the warrant return
18 returned no results between that account and Brianna
19 Walters'.
20 So there has to be two unconsented contacts with
21 a willful course of conduct, and you could argue that even
22 if any of this was true, if there's nothing returned from
23 that conversation that purports to have included that no
24 contact message, even if the fake accounts were linked to
25 me, which they haven't been, is there a willful course of

1 conduct at that point? Even that's doubtful. Also
2 requires that a reasonable person would be in fear. That
3 one's more difficult to discuss.
4 Everybody else -- everybody has different
5 thresholds. I can go on TikTok and scroll around and I
6 can see somebody dressed up in piercings and tattoos and,
7 you know, hashtag satanism, hashtag spread evil, and
8 that's just what's normal to them. It's a very extreme
9 example but everybody's different. Nobody knows what's a
10 crazy love story and what's completely inappropriate or
11 what's a lost cause or what shouldn't be given up on.
12 As I stated, since there is no evidence of any
13 electronic communication between me and Brianna Walters,
14 there's no indication I was actually at her house either
15 of those times despite all the claims of all this evidence
16 but no actual forensic returns confirming it. And the
17 propensity of the complaining witness to attribute things
18 to me that are readily verifiable even from the
19 screenshots that they submitted not to have been included
20 in the conversations.
21 There's a lot -- I feel like at this point
22 reasonable doubt, the threshold, has been reached. You
23 have to decide whether you're going to err on the side of
24 caution of protecting an alleged victim or erring on the
25 side of caution of not infringing on the liberty of

1 someone that might just be caught up in a huge mess. I
2 would argue that precedent for the justice system is to
3 err on the side of caution of preserving liberty where
4 there's no threat to society.
5 Just to reinforce that and the last point that
6 I'll make, even if all this -- even in the worst scenario
7 in terms of if all of this alleged behavior was true, if
8 all of this took place, I sent all those messages, I saw
9 this person at Walmart, I went to this person's house, all
10 of these things, the fact that even in that instance it
11 was a nonviolent and sincere attempt to connect followed
12 by now six months of no additional re-offenses, someone
13 that has no prior criminal record, what justifies erring
14 on the side of caution of protecting society from that
15 individual?
16 So I hope that today that we've established that
17 there's more than enough reasonable doubt to find me not
18 guilty through all of the contradictions of evidence,
19 digital integrity concerns, and also concerns over right
20 and wrong even in the prosecution's own story.
21 So I thank you all very much for your time. I'm
22 sorry that we had to take up all of your time. This whole
23 proceeding will have in total cost the public over $18,000
24 when salaries are taken into account, not that anybody
25 here doesn't do good work. Just saying we have things

1 like this that can become so complicated with all these
2 accounts and all this. Maybe an alternate State response
3 could be more appropriate as a first response, such as a
4 mediation or arbitration where both parties before one is
5 presumed guilty before proven innocent and anther is
6 established as a victim who gets certain protections over
7 the course of the trial, that both sides be taken into
8 account and the issue be dealt with in a more objective
9 fashion.
10 THE COURT: Thank you.
11 THE DEFENDANT: Thank you very much for your
12 time.
13 THE COURT: Thank you.
14 People have the last word as they have the
15 burden. Is there anything else you'd like to indicate?
16 MR. PASKULOVICH: Briefly, your Honor.
17 THE COURT: Okay.
18 MR. PASKULOVICH: It's interesting, mediation
19 and arbitration. You know what's very interesting about
20 those things? The defendant would get to be with the
21 victim. It's something that he would not have -- there
22 wouldn't be lawyers. It wouldn't be a setting like this.
23 They'd be together and they'd be forced to talk. He could
24 force her to talk to her (sic). I think that speaks
25 volumes.

1 We talked a lot about evidence, or the defendant
2 did, and he picked on a lot of our evidence. He said we
3 didn't have any. He criticized the social media. Well,
4 one thing that Judge Carniak's going to instruct you is
5 that witness testimony is evidence, and we talked about
6 this in voir dire. You can convict on witness testimony
7 alone. If you believe Brianna, that alone is enough to
8 convict. There's a whole bunch of evidence, different
9 sorts in this case, but that's one thing important to
10 remember.
11 Also there's circumstantial evidence, the judge
12 will tell you, direct evidence. We went through those
13 examples during voir dire. It does not have to be the way
14 defendant describes it. I don't instruct what evidence
15 is. I don't instruct what reasonable doubt is, defendant
16 doesn't, Judge Carniak does.
17 There were a lot of questions or statements made
18 just now about things that should have been admitted into
19 evidence. During the jury instructions Judge Carniak's
20 made clear that she is here to ensure that there's a fair
21 trial. She makes those rulings. She tells you guys what
22 the law is. My statements, my arguments, the defendant's
23 arguments, and even things the judge says while making her
24 rulings, that's not evidence. It's just admitted exhibits
25 and witness testimony is and Judge is the one that tells

1 you the law.

2 So what I'm trying to say is don't listen to me,

3 look at the evidence, don't listen to defendant, look at

4 the evidence. Defendant's in a unique circumstance. He

5 has the right to represent himself, but there are two

6 different periods of time you have to look. When he was

7 on the witness stand giving these narrative statements,

8 that could be his evidence, but all the statements made

9 while he's representing himself about alleged evidentiary

10 issues or getting things late from the Prosecutor's

11 Office, things we've heard about for the first time,

12 $18,000 costing for the court proceeding, where is this

13 coming from? He can't give testimony when he's acting in

14 that form. So I would ask that you follow Judge's

15 instructions, give all of those statements the appropriate

16 weight.

17 Another thing the judge is going to instruct

18 which is really important is penalty is not to be

19 considered. It's for an important reason. So any

20 statement made about potential penalty, that's not a

21 factor. When we were in voir dire we agreed that even if

22 you didn't like the law but I proved all of the elements,

23 you could convict, because that's what the judge says the

24 law is. So none of those other factors, cost, reform,

25 none of that should play a role. Judge will tell you it

1 doesn't.

2 End of the day we heard from -- or in the end we

3 heard from Brianna that she lives at 1145 Bayfield in Lake

4 Orion -- I'm sorry, in Orion Township, Oakland County,

5 that defendant's been to her house twice, that he's sent a

6 ton of messages without consent, he's left the letter,

7 she's told him to stop, and he hasn't. If you believe

8 her, that is enough to convict.

9 Now, the date of offense is something I have to

10 prove as well and it happened in Orion Township. Date of

11 offense is June 27, 2024, to December 24, 2024 -- I'm

12 sorry, 21, 2024. Doesn't mean that the first stalking act

13 or occurrence has to happen on June 27th. As long as there

14 are the two unconsented contacts or occurrences that

15 happened in that span, I've proven that beyond a

16 reasonable doubt it happened on that date. So it could

17 both be in June, that's fine. It just has to be between

18 those two dates, two of the unconsented contacts.

19 Lastly, I think that you've heard enough, all

20 this talking. Please do not hesitate to ask for the

21 exhibits to look through them yourselves. You can

22 personally see them. Look at the Facebook or Meta

23 records. See their own definitions about the messages.

24 Read them for yourself. If you have any questions about

25 it, it's all right there in evidence. But I believe that

1 after you guys look through all of it and talk about it
2 amongst yourselves, you'll find the defendant guilty as
3 charged. Thank you.
4 THE COURT: Thank you.
5 Members of the jury, the evidence and arguments
6 in the case are now finished and I'm now going to instruct
7 you as to the law and how it applies to this case.
8 Remember that you've taken an oath to return a true and
9 just verdict based only on the evidence and my
10 instructions on the law. You must not let sympathy or
11 prejudice influence your decision. As jurors you are to
12 decide the facts of the case. This is your job and no one
13 else's. You must think about all the evidence and then
14 decide what each piece of evidence means and how important
15 you think each piece of evidence is. This includes
16 whether you believe what each of the witnesses has said,
17 and what you decide about the facts of the case are final.
18 It's my duty to instruct you as to the law as it
19 applies to this case. You must take the law as I give it
20 to you. If one of the parties says something different
21 about the law, follow what I say.
22 At various times I have given you some
23 instructions initially at the beginning. You must take
24 all my instructions together as the law you are to follow.
25 You should not pay attention to some instructions and

1 ignore others. To sum it up, it's your job to decide the
2 facts of the case, apply it to the law as I give to you,
3 and that's how you are going to decide this case.
4 A person accused of a crime is presumed to be
5 innocent. This means that you must start with the
6 presumption that the defendant is innocent. This
7 presumption continues throughout the trial and entitles
8 the defendant to a verdict of not guilty unless you are
9 convinced beyond a reasonable doubt that he is guilty.
10 Every crime is made up of parts called elements.
11 The prosecutor must prove each of the elements beyond a
12 reasonable doubt. The defendant is not required to prove
13 his innocence or to do anything. If you find the
14 prosecution has not proved every element beyond a
15 reasonable doubt, then you must find the defendant not
16 guilty. Proof beyond a reasonable doubt is proof that
17 leaves you firmly convinced of the defendant's guilt. A
18 reasonable doubt is a fair, honest doubt growing out of
19 the evidence or the lack of evidence. It is not merely an
20 imaginary or a possible doubt but a doubt that's based
21 upon reason and common sense. A reasonable doubt is just
22 that, a doubt that's reasonable after careful and
23 considered examination of the facts and circumstances of
24 the case.
25 When you discuss the case and decide on your

1 verdict, you may only consider the evidence that has been
2 properly admitted. Therefore, it's important for you to
3 understand what is evidence and what is not evidence.
4 Evidence includes only the sworn testimony of the witness
5 and the exhibits that have been admitted. Many things are
6 not evidence and you must be careful not to consider them
7 as such, and I'm going to describe some of those things to
8 you right now.
9 The fact that the defendant is charged with a
10 crime and is on trial is not evidence. The parties'
11 statements and arguments are not evidence. They're only
12 meant to help you understand the evidence and how each
13 side views their legal theories. You should only accept
14 things that the parties say that are supported by the
15 evidence or by your own common sense and general
16 knowledge. The parties' questions to the witnesses are
17 also not evidence. You should consider these questions
18 only as they give meaning to the witnesses' answers.
19 Any comments made by myself, rulings, and
20 instructions are also not evidence. It's my duty to see
21 the trial's conducted according to the law and to tell you
22 the law as it applies to this particular case. However,
23 when I make a comment or give an instruction, I'm not
24 trying to influence your vote or express a personal
25 opinion about the case. If you believe that I have an

1 opinion about how you should decide this case, you must
2 pay no attention to that opinion. You are the only judges
3 of fact and you should decide this case from the evidence.
4 At times during the trial I've excluded certain
5 evidence and stricken testimony that was heard. Do not
6 consider these things in deciding the case. Make your
7 decision based only on the evidence that I have let in and
8 nothing else.
9 Your decision should be based on all the
10 evidence regardless of which party presented it. You
11 should use your own common sense and general knowledge in
12 weighing and judging the evidence, but you should not use
13 any personal knowledge you may have about a person, place,
14 or event. To repeat one more time, you must decide this
15 case based only on the evidence that was admitted during
16 this trial.
17 As I said before, it's your job to decide the
18 facts of the case. This is your job and no one else's.
19 You must decide which witnesses you believe and how
20 important you believe each witness is, their testimony is.
21 You do not have to accept or reject everything a witness
22 said. You are free to believe all, part, or none of a
23 witness's testimony. In deciding which testimony you
24 believe, you should rely on your own common sense and
25 everyday experience; however, in deciding whether you

1 believe a witness's testimony, you must set aside any bias
2 or prejudice you may have based upon race, gender,
3 national origin of a witness.
4 There are no fixed set of rules in determining
5 whether you believe a witness is telling the truth or not,
6 but you may -- it may be helpful to ask yourself some of
7 these questions. For example, was the witness able to see
8 or hear clearly? How long was the witness watching or
9 listening? Was anything else going on that might have
10 distracted the witness? Did the witness seem to have a
11 good memory? How did the witness look and act while
12 testifying? Did the witness seem to make an honest effort
13 to tell the truth, or did the witness seem to evade the
14 questions or even argue? Does the witness's age or
15 maturity affect how you judge the defendant -- the
16 testimony? Does the witness have any bias, prejudice, or
17 personal interest in how the case is decided? Have there
18 been any promises, threats, suggestions, or other
19 influences that affected the witness -- how the witness
20 testifies? In general, does the witness have any special
21 reason to tell the truth or any special reason to lie?
22 All in all, how reasonable is that witness's testimony
23 when you think about all the other evidence in the case?
24 Sometimes the testimony of different witnesses
25 will not agree, and then you must decide which testimony

1 you're going to accept. You should think about whether
2 the disagreement involves something important or not and
3 whether you think someone is lying or simply mistaken.
4 People see and hear things differently and witnesses may
5 testify honestly but simply be wrong about what they
6 thought they saw or remembered. It's also a good idea to
7 think about which testimony agrees best with all the other
8 evidence in the case. However, you may also conclude that
9 a witness deliberately lied about something that is
10 important to how you decide the case. If so, you may
11 choose not to accept anything that that witness said. On
12 the other hand, if you think the witness lied about some
13 things but told the truth about others, you may simply
14 accept the part you think is true and you can ignore the
15 rest.
16 The prosecution must also prove beyond a
17 reasonable doubt that the crime occurred on or about June
18 27, 2024, through -- and you have December 24th, but it
19 should be December 21st, correct?
20 MR. PASKULOVICH: Yes, your Honor.
21 THE COURT: Okay. I'm just going to mark that
22 down. In the city of Orion Township within Oakland
23 County.
24 When you go to the jury room, you're going to be
25 provided a copy of the final jury instructions and you

1 should choose a jury foreperson from amongst yourselves.
2 You should see to it that your discussions are carried on
3 in a businesslike way and everyone has a fair chance to be
4 heard during deliberations. Please turn off your cell
5 phones or any other communication equipment until we
6 recess.
7 A verdict in a criminal case must be unanimous.
8 In order to return a verdict, it's necessary that each of
9 you agree on that verdict. In the jury room you're going
10 to discuss the case amongst yourselves, but ultimately
11 each of you will have to make up your own mind. Any
12 verdict must represent the individual considered judgment
13 or each juror.
14 It's your duty as jurors to talk to each other
15 and make every reasonable effort to reach an agreement.
16 Express your opinions and the reasons for them, but keep
17 an open mind as you listen to your fellow jurors. Rethink
18 your opinions and do not hesitate to change your mind if
19 you decide you were wrong. Try your best to work out your
20 differences. However, although you should try to reach an
21 agreement, none of you should give up your honest opinion
22 of the case just because other jurors disagree with you or
23 just for the sake of reaching a verdict. In the end, your
24 vote must be your own and you must vote honestly in good
25 conscience.

1 If you have any questions about the jury
2 instructions before you begin deliberations or questions
3 about the instructions that arise during deliberations,
4 you can submit them in writing in a folded piece of paper.
5 There's a button on the side of the wall that goes
6 directly into my law clerk's phone and she will answer.
7 If for some reason, it very rarely happens, that button's
8 not working and nobody answers immediately, you can come
9 out here and we will be able to assist you.
10 Possible penalty should not influence your
11 decision. It's the duty of myself to fix the penalty
12 within the limits provided by law.
13 The prosecution has introduced evidence of a
14 statement that it claims the defendant made. Before you
15 consider such an out-of-court statement against the
16 defendant, you must first find that the defendant actually
17 made the statement given to you. If you find the
18 defendant did make the statement, you may give that
19 statement whatever weight you think it deserves, and in
20 deciding this case you should think about how and when the
21 statement was made and about all the other evidence in the
22 case. You may consider the statement in deciding the
23 facts of the case and in deciding if you believe the
24 defendant's testimony in court today.
25 Facts can be proven by direct evidence from a

1 witness or an exhibit. Direct evidence is what we
2 actually see or hear. For example, if you look outside
3 and see rain falling, that's direct evidence that it's
4 raining outside. But facts can also be proven by what is
5 called circumstantial evidence or indirect evidence.
6 Circumstantial evidence is evidence that normally or
7 reasonably leads to other facts. So, for example, if you
8 see a person come in from outside wearing a raincoat with
9 small droplets of rain, that would be circumstantial
10 evidence that it's raining outside. You may consider
11 circumstantial evidence. Circumstantial evidence by
12 itself or in combination with direct evidence can be used
13 to prove the elements of a crime. In other words, you
14 should consider all the evidence that you believe.
15 If you believe that a witness previously made a
16 statement inconsistent with the witness's testimony at
17 trial, the only purpose for which that earlier statement
18 can be considered by you is in deciding whether the
19 witness testified truthfully in court. The earlier
20 statement is not evidence that what the witness said
21 earlier is true.
22 There were stipulations. I think those are
23 stipulated exhibits. I think that was one through five.
24 These are called stipulated facts. You may use such
25 stipulated facts as true, but you're not required to do

so.

The defendant is charged with the crime of stalking. To establish this charge, the prosecutor must prove each of the following elements beyond a reasonable doubt. First, the defendant committed two or more willful, separate, and noncontinuous acts of unconsented contact with Brianna Walters. Unconsented contact means that the defendant initiated or continued contact with Brianna Walters without her consent and includes following or appearing within sight of Brianna Walters, approaching Brianna Walters in public or in private property, appearing at Brianna Walters' workplace or home, entering or remaining on property owned, leased or occupied by Brianna Walters, contacting Brianna Walters by telephone, sending an electronic communication or mail to Brianna Walters, placing an object on or delivering an object to property owned, leased, or occupied by Brianna Walters.

Unconsented contact means any contact with another individual that is initiated or continued without that individual's consent or in disregard of the individual's expressed desire that the contact be avoided or discontinued.

Harassment means conduct directed toward a victim that includes, but is not limited to, repeated or continuing unconsented contact that would cause a

1 reasonable person to suffer emotional distress and that
2 actually causes the victim to suffer emotional distress.
3 Harassment does not include constitutionally protected
4 activity or conduct that serves a legitimate purpose.
5 Stalking means a willful course of conduct
6 involving repeated or continuing harassment of another
7 individual that would cause a reasonable person to feel
8 terrorized, frightened, intimidated, threatened, harassed,
9 or molested and that actually causes the victim to feel
10 terrorized, intimidated, threatened, harassed, or
11 molested.
12 Emotional distress means significant mental
13 suffering or distress that may -- that does not
14 necessarily require medical or other professional
15 treatment or counseling.
16 Second, that the contact would cause a
17 reasonable individual to suffer emotional distress; third,
18 that the contact caused Brianna Walters to suffer
19 emotional distress; fourth, that the contact would cause a
20 reasonable individual to feel terrorized, frightened,
21 intimidated, threatened, harassed, or molested; and,
22 fifth, that the contact caused Brianna Walers to feel
23 terrorized, frightened, intimidated, threatened, harassed,
24 or molested.
25 You’ve heard testimony from witnesses who are

1 police officers. That testimony must be judged by the
2 same standards you would use to evaluate the testimony of
3 any other witness.
4 You should not decide the case based upon which
5 side produced more evidence. Instead you should think
6 about each witness and each piece of evidence and whether
7 you believe them. Then you must decide whether the
8 testimony and evidence you believe proves beyond a
9 reasonable doubt that the defendant is guilty.
10 You've heard that a lawyer or lawyer's
11 representative talked to one or more of the witnesses.
12 There is nothing wrong with this. A lawyer or their
13 representative may talk to a witness to find out what the
14 witness knows about the case and what the witness's
15 testimony will be.
16 Again, if you want to communicate with me while
17 you're in the jury room, please have your jury foreperson
18 write a note and give it to my law clerk. It's not proper
19 for you to talk directly with the judge, lawyers, court
20 officers, or other people involved in the case.
21 As you discuss the case, you must not let
22 anyone, even myself, know how your voting stands.
23 Therefore, until you return with a unanimous verdict, do
24 not reveal this to anyone outside the jury room.
25 When you go to the jury room to deliberate, of

1 course you're going to take your notes with you and I'll
2 give you a copy of the full jury instructions.
3 This jury instruction indicates if you want to
4 look at the exhibits. Should we just have them take the
5 exhibits in with them?
6 MR. PASKULOVICH: I'd be okay with that, your
7 Honor.
8 THE COURT: Do you have any objections to that,
9 having the jury take the exhibits in with them?
10 THE DEFENDANT: No, your Honor.
11 THE COURT: Okay. We'll do that, so that will
12 be accompanying there.
13 Except for the video, if you want to watch the
14 video for any reason, just have your jury foreperson write
15 a note for that purpose and we can all watch it together
16 or whatever portions you want to watch together.
17 Again, you'll be given a copy of these
18 electronic decisions and you may return a verdict of
19 guilty of the alleged crime or not guilty, and I've
20 prepared a jury verdict form that's pretty
21 self-explanatory. Once you do reach a unanimous verdict,
22 just fill it out, have your jury foreperson fill it out,
23 sign it, date it, and let my law clerk know that you have
24 reached a unanimous verdict.
25 With all of that said, we do have one juror that

1 we need to select from lots to make a jury of six, so
2 thank that one person in advance for listening to all of
3 this and not being able to deliberate. You can see it's
4 from our bingo chips, very scientific.
5 COURT CLERK: Juror no. 1.
6 THE COURT: Juror no. 1, okay.
7 Juror no. 1, do you have things in the jury
8 room?
9 JUROR NO. 1: No.
10 THE COURT: Okay. So I'll just talk to you in
11 just a minute in private.
12 In the meantime, I'll have jurors no. 2 through
13 7 -- if you want to escort them out, and in just one
14 second we'll get you all that information that I indicated
15 to you.
16 All rise for the jury.
17 You can take those back with you if you choose,
18 sure.
19 (At 11:32 a.m., jurors exit courtroom.)
20 THE COURT: Please be seated.
21 Could you shut that door, Kelli?
22 I just want to confirm that both sides are
23 satisfied with all the jury instructions.
24 MR. PASKULOVICH: Yes, your Honor. For the
25 stipulated exhibits, though, I should have said this

1 earlier, I'm wondering if we should have some sort of
2 instruction that they're not to think anything of -- used
3 a pen to just mark off some things. I don't know if it's
4 worth mentioning that it was stipulated or agreed upon
5 that pages will be omitted and redacted within it.
6 THE COURT: Well, I did indicate that one
7 through five were stipulated to. What is it that you
8 wanted to indicate to the jurors?
9 MR. PASKULOVICH: There are pages missing from
10 some of them, so they'll be missing a number, and then we
11 just have it, like, scribbled out currently where
12 defendant used a pen. So I could --
13 THE DEFENDANT: The suppressions.
14 THE COURT: Okay. Did you want that indicated
15 to the --
16 MR. PASKULOVICH: It doesn't matter to me.
17 THE DEFENDANT: I feel like it would help them
18 to be less confused.
19 THE COURT: Okay. Well, then we will have them
20 brought back in to explain that. Is that what you're
21 requesting?
22 MR. PASKULOVICH: Or even if -- yes.
23 THE COURT: Okay. All right. Other than that,
24 are you satisfied with the jury instructions?
25 THE DEFENDANT: Yes, your Honor.

1 THE COURT: Okay. All right. Why don't we
2 bring them back in for that, and you can actually give
3 them -- we can give the exhibits to my law clerk once that
4 has been established.
5 (At 11:35 a.m., jurors enter courtroom.)
6 THE COURT: Okay. Oh, please be seated.
7 There was just one more thing that we needed to
8 advise you of just so there's no confusion with you.
9 We're going to have you take into the jury room in just a
10 moment all the exhibits that were properly admitted.
11 As I indicated to you just a few moments ago,
12 Exhibits 1 through 5 were agreed upon, but there are pages
13 missing and there are things scribbled out. But the
14 agreement was that they are to be admitted as is as you
15 receive them. So if you see pages missing or things
16 scribbled out, that's because that was specifically what
17 was agreed to. What you're receiving is what the parties
18 agreed to.
19 Does that --
20 MR. PASKULOVICH: Correct, your Honor.
21 THE COURT: -- clear any confusion up?
22 THE DEFENDANT: Yes, your Honor. I just want to
23 clarify to that it's just because that stuff was unrelated
24 to -- for some reason it came back with conversations that
25 had nothing to do with the accounts that were requested.

1 So that's why the information's missing.
2 THE COURT: Thank you. Okay. Yes, thank you.
3 I just wanted to clarify -- or the parties
4 wanted to clarify that and I think that's appropriate so
5 there's no confusion.
6 Caitlin, if you could take the exhibits and give
7 those to the jurors, that would be great, and I'm going to
8 give you the jury verdict form, here's that, and then I'll
9 give the full jury instructions in just less than a
10 minute.
11 All rise for the jury.
12 (At 11:36 a.m., jurors exit courtroom.)
13 THE COURT: Okay. Please be seated. And if
14 there's nothing further we are in recess and I'll be with
15 you in just one second.
16 (At 11:37 a.m., court recessed.)
17 (At 12:13 p.m., court reconvened.)
18 THE COURT: Recalling People v Parton, 24-7808.
19 MR. PASKULOVICH: Good morning. Kyle
20 Paskulovich appearing on behalf of the People.
21 THE COURT: Mr. Parton.
22 THE DEFENDANT: Good morning, your Honor. Fox
23 Parton representing myself.
24 MR. DOWNER: Harold Downer as standby counsel
25 for Mr. Parton.

1 THE COURT: Thank you. The record should
2 reflect the jurors have come to a unanimous decision and
3 we're just waiting for them to come into the courtroom.
4 COURT CLERK: All rise.
5 (At 12:15 p.m., jurors enter courtroom.)
6 THE COURT: Please be seated. If the jury
7 foreperson could please stand and give the jury verdict
8 form to my law clerk. I'm sure you've filled it out
9 correctly.
10 Okay. You can give that back.
11 And if you could keep standing and the defense
12 and defendant could please stand, and if you could read
13 the verdict, Jury Foreperson, that would be great.
14 JUROR FOREPERSON: We, the jury, find the
15 defendant guilty of stalking.
16 THE COURT: Okay. Thank you very much. If you
17 want to give that back to my law clerk, that would be
18 great.
19 Does either side want the jury polled?
20 MR. PASKULOVICH: Yes, your Honor.
21 THE COURT: Okay. Juror no. 2, was that and is
22 that your verdict?
23 JUROR NO. 2: Yes.
24 THE COURT: Juror no. 3, was that and is that
25 your verdict?

1 JUROR NO. 3: Yes.

2 THE COURT: I'm sorry?

3 JUROR NO. 3: Yes.

4 THE COURT: Juror no. 4, was that and is that

5 your verdict?

6 JUROR NO. 4: Yes.

7 THE COURT: Juror no. 5, was that and is that

8 your verdict?

9 JUROR NO. 5: Yes.

10 THE COURT: And, Juror no. 6, was that and is

11 that your verdict?

12 JUROR NO. 6: Yes.

13 THE COURT: And, Juror no. 7, was that and is

14 that your verdict?

15 JUROR NO. 7: Yes.

16 THE COURT: Okay. Thank you. I'm going to have

17 you retire back to the jury room. I will be with you.

18 We're going to shred all your notes and everything else

19 that's there. So I'll explain a little bit more about

20 that and about your jury duties -- or your jury service in

21 literally two minutes.

22 So all rise for the jury, and if you could just

23 escort yourself back out, that would be great, and we'll

24 be with you in two minutes.

25 (At 12:16 p.m., jurors exit courtroom.)

1 THE COURT: Okay. Please be seated.
2 Mr. Parton, I'm going to have you check out
3 downstairs to get your -- you're going to have an
4 evaluation with the probation department interview. So
5 we'll get some more information about you, and then you'll
6 come back on a separate date and time for sentencing. At
7 that time you'll have a right to an attorney if you choose
8 to do so, but, of course, you can always represent
9 yourself as you've chosen today. That's up to you. And
10 when you return, there's fines and costs that are due in
11 this matter, 1,000 in fines, 700 in costs, and a state
12 mandated fee of 125. You'll get that exact figure
13 downstairs. If you're placed on probation, there will be
14 probationary oversight fees as well.
15 So you'll get two dates, one to meet with
16 probation and then a second for a sentencing date. Do you
17 have any questions about any of that?
18 THE DEFENDANT: No, your Honor.
19 THE COURT: Okay. Anything further from the
20 People?
21 MR. PASKULOVICH: Your Honor, since there's been
22 a conviction, I would ask if the Court would consider
23 something such as a GPS tether for the defendant. Now
24 that we have a conviction, he came here and testified he
25 can't remember many of his actions. It caused a great

1 deal of concern based on the testimony I heard and his
2 willingness to -- or ability to follow the law if he's not
3 able to remember his actions, what he does, and this whole
4 thing the jury just found him guilty of.
5 THE DEFENDANT: Your Honor, I object to that. I
6 think it's kind of unnecessary. Again, no prior criminal
7 history, six months without any additional allegations.
8 I've remained compliant with bond without any need for
9 measures like that. I don't think there's any evidence
10 that I need additional measures to remain compliant with
11 the court.
12 THE COURT: You will remember to stay away from
13 the victim in this case, correct?
14 THE DEFENDANT: Correct.
15 THE COURT: You can remember that, correct?
16 THE DEFENDANT: I can remember that, your Honor.
17 THE COURT: Okay. If you do not, you're going
18 to jail; you understand?
19 THE DEFENDANT: Yes, your Honor.
20 THE COURT: Based upon the fact that there's
21 been no additional threatening behaviors or anything at
22 issue, you think there's a safety threat to her? I don't
23 see that, but you tell me.
24 MR. PASKULOVICH: Your Honor, I don't see a
25 major safety threat. I think it's just more so concern.

1 THE COURT: It's been very unusual testimony, to
2 say the least. I'll give you that. I've been on the
3 bench 25 years and I've never quite heard anything like
4 that.
5 But as far as the danger to her, stay away, stay
6 away, stay away, okay? Again, if she's shopping and you
7 bump into her just by happenstance, I know with that PPO,
8 you don't acknowledge her, you walk the other way, okay?
9 THE DEFENDANT: Yes, your Honor.
10 THE COURT: All right.
11 MR. PASKULOVICH: There is one other issue.
12 THE COURT: Yes.
13 MR. PASKULOVICH: I don't know if the Court can
14 really address it, but I guess you could reiterate that
15 indirect contact's not allowed. There are allegations
16 that defendant is contacting all victim's friends.
17 THE COURT: Oh, absolutely.
18 MR. PASKULOVICH: So even not sending messages
19 about her, but just talking to them in a way that every
20 time she talks to her own friends, she feels, well, look
21 at the new Fox message. So she's feeling very overwhelmed
22 in that sense. He's not saying to say anything to her,
23 but it's the point that he's making conversation with
24 people he wouldn't normally talk to.
25 THE DEFENDANT: Wait, I'm sorry. Could you

1 repeat or clarify what she said at the beginning? I lost
2 track.
3 MR. PASKULOVICH: Allegations you're reaching
4 out to people that are known to be friends with the
5 victim. You're not asking there be any contact. You're
6 not saying tell the victim anything, but there are
7 conversations with people that you know associate with the
8 victim, and it gets back to her that --
9 THE COURT: How was this done? Was this done
10 through Facebook?
11 MR. PASKULOVICH: Social media.
12 THE COURT: Okay.
13 THE DEFENDANT: We have mutual contacts.
14 THE COURT: Okay. This is what I would say to
15 that, okay? Technically there's nothing illegal about
16 that, but you don't want even the appearance of that.
17 You've got other friends. If they're mutual friends, do
18 not contact anybody that you have mutual friends with.
19 There's other friends that you can do this.
20 You need to focus in on you right now, not on
21 friends that she has mutual friends of. There's plenty of
22 other friends that you can have on Facetime or Facebook.
23 Do you have any questions about that?
24 THE DEFENDANT: I have a question, your Honor,
25 about given that, I mean, I've been convicted essentially

1 on screenshots that weren't corroborated. What's going to
2 happen on me on my bond if someone submits another
3 screenshot where an account that has my name on it and
4 says it was me --
5 THE COURT: All the more reason to have no
6 contact, direct or indirect contact, with Ms. Walters,
7 okay? So, you know, you're just asking for trouble, so to
8 speak, okay, by even befriending anybody who she's friends
9 with. Disconnect totally, okay, totally so there's no
10 issues whatsoever, okay?
11 THE DEFENDANT: Yes, your Honor. I'm just
12 asking what's the process if that happens? Am I going to
13 be taken into custody because evidence --
14 THE COURT: Sir --
15 THE DEFENDANT: -- like that would --
16 THE COURT: Sir, there's nothing -- protect
17 yourself by staying away from her, okay? Unless this is
18 some huge conspiracy against you, it's not going to
19 happen, okay? So focus in on you. Focus in on your
20 mental health, and we're going to move on from here, okay?
21 Check out downstairs, criminal counter.
22 MR. DOWNER: Your Honor, there's one other thing
23 I have to ask you.
24 THE COURT: Yes.
25 MR. DOWNER: Am I continuing on through

1 sentencing or am I released as standby counsel?

2 THE COURT: My understanding you can be released

3 through as it relates to this, and if he wants to hire --

4 have an attorney for sentencing -- I will ask you,

5 actually.

6 Do you want an attorney for sentencing? We'll

7 make sure that we have one for you if that's the case.

8 THE DEFENDANT: No, your Honor. I don't think I

9 need counsel appointed for me.

10 THE COURT: Okay. Thank you. If you change

11 your mind, you can on the day of.

12 But you are discontinued. Thank you.

13 MR. DOWNER: Thank you, your Honor.

14 THE COURT: Okay. Thank you.

15 (At 12:22 p.m., matter concluded.)

16 - - -

STATE OF MICHIGAN)

) SS

COUNTY OF OAKLAND)

I hereby certify that this transcript, consisting of pages one through one hundred twenty-seven, is a complete, true and correct transcript of the proceedings had and the testimony taken in the matter of THE PEOPLE OF THE STATE OF MICHIGAN, versus FOX ROBERT PARTON, Case No. 24-007808, held on May 22, 2025.

/S/ Jennifer Przybylo

_____
Jennifer L. Przybylo, CER-5852
Certified Court Recorder
52/3 District Court
700 Barclay Circle
Rochester Hills, MI 48307

Dated:
June 25, 2025